

بِسْمِ اللَّهِ الرَّحْمَنِ الرَّحِيمِ

# Topic IV — Human Rights, Human Dignity, Women and the Family

The Knowledge Base · Human rights, the Farewell Sermon, the UDHR,  
human dignity and equality, the status and rights of women, and the family

---

Ten chapters built from the syllabus and from the twelve questions set on this topic between 2015 and 2026, with the contemporary debates, the examiner's record, five likely questions, a numbered one-liner bank and chapter-by-chapter revision notes. Every point carries its evidence — **the Quran first, then the Hadith, then the Companions and the scholars** — inside the point itself.

# Contents

## HOW TO BUILD THE CONTENTS

The Contents below is left empty on purpose. In Microsoft Word, **right-click anywhere on the grey line below** and choose **Update Field** → **Update entire table** → **OK**. The full table of contents with page numbers will appear.

On a Mac: right-click (or Control-click) the line → **Update Field**. If you edit the notes later, repeat this step to refresh the page numbers. You can also press **Ctrl + A** then **F9** (Windows) to update every field in the document at once.

|                                                                        |    |
|------------------------------------------------------------------------|----|
| How to Use This Document .....                                         | 8  |
| What this topic covers .....                                           | 8  |
| How this document is built .....                                       | 9  |
| Part Zero — The ABC Before the Chapters .....                          | 10 |
| 0.1 The words of this topic .....                                      | 10 |
| 0.2 Two kinds of rights, one accountability .....                      | 10 |
| Chapter 1 · Human Rights in Islam: Concept, Sources and Features ..... | 12 |
| 1.1 The concept of human rights .....                                  | 12 |
| (1) The general meaning .....                                          | 12 |
| (2) The Islamic concept .....                                          | 12 |
| 1.2 The sources of human rights in Islam .....                         | 12 |
| 1.3 The Maqasid al-Shari'ah — the map of rights .....                  | 12 |
| 1.4 The main human rights in Islam .....                               | 13 |
| (1) The right to life .....                                            | 13 |
| (2) The right to dignity and honour .....                              | 13 |
| (3) The right to equality .....                                        | 14 |
| (4) The right to justice .....                                         | 14 |
| (5) Freedom of religion .....                                          | 14 |
| (6) The right to property .....                                        | 14 |
| (7) The right to privacy .....                                         | 15 |
| (8) The right to freedom of opinion and to criticise rulers .....      | 15 |
| (9) The right to basic needs .....                                     | 15 |
| (10) Personal responsibility — no collective punishment .....          | 15 |
| (11) The right to a fair trial .....                                   | 16 |
| 1.5 The features of human rights in Islam .....                        | 16 |
| Chapter 2 · The Farewell Sermon: The Charter of Human Rights .....     | 17 |
| 2.1 The occasion .....                                                 | 17 |
| 2.2 The main declarations — each a human right .....                   | 18 |
| (1) Sanctity of life, property and honour .....                        | 18 |

|                                                                                         |    |
|-----------------------------------------------------------------------------------------|----|
| (2) Equality of all human beings .....                                                  | 18 |
| (3) The rights of women .....                                                           | 19 |
| (4) Abolition of riba — economic justice .....                                          | 19 |
| (5) Abolition of blood feuds.....                                                       | 19 |
| (6) Personal responsibility .....                                                       | 19 |
| (7) Rights of inheritance .....                                                         | 19 |
| (8) Rights of servants and the weak .....                                               | 20 |
| (9) Brotherhood and the rule of the Book .....                                          | 20 |
| (10) Accountability and conveying the message.....                                      | 20 |
| 2.3 Why it is 'the basic document for the awakening of the conscience of mankind' ..... | 20 |
| Chapter 3 · Islam and the UDHR: A Comparative and Critical Analysis.....                | 22 |
| 3.1 The UDHR — the facts.....                                                           | 22 |
| 3.2 The Muslim documents .....                                                          | 22 |
| 3.3 Where Islam and the UDHR agree .....                                                | 22 |
| 3.4 Where they differ — the comparative analysis.....                                   | 23 |
| (1) The source of rights.....                                                           | 23 |
| (2) Rights and duties.....                                                              | 23 |
| (3) The enforcement mechanism .....                                                     | 23 |
| (4) The scope .....                                                                     | 23 |
| (5) Individual and society .....                                                        | 23 |
| (6) The limits of freedom.....                                                          | 23 |
| (7) The points of tension .....                                                         | 23 |
| 3.5 The critical analysis.....                                                          | 24 |
| (1) Criticism of the UDHR and its practice .....                                        | 24 |
| (2) Honest self-criticism of the Muslim world .....                                     | 24 |
| (3) The verdict.....                                                                    | 24 |
| Chapter 4 · Human Dignity and Equality: Men and Women, Colour, Race and Creed.....      | 25 |
| 4.1 The sources of human dignity in the Quran .....                                     | 25 |
| (1) Honoured by Allah .....                                                             | 25 |
| (2) Created in the best form .....                                                      | 25 |
| (3) The spirit of Allah breathed into him .....                                         | 25 |
| (4) The vicegerent on earth .....                                                       | 25 |
| (5) Knowledge given to him .....                                                        | 26 |
| (6) The angels bowed to him.....                                                        | 26 |
| (7) The universe made subservient.....                                                  | 26 |
| (8) The trust (amanah).....                                                             | 26 |
| 4.2 Equality irrespective of colour, race and creed.....                                | 27 |
| (1) One origin.....                                                                     | 27 |

|                                                                                  |    |
|----------------------------------------------------------------------------------|----|
| (2) Diversity for recognition, not rank .....                                    | 27 |
| (3) Allah looks at hearts, not faces.....                                        | 28 |
| (4) The Sunnah in practice.....                                                  | 28 |
| (5) Equality of creed — dignity of non-Muslims.....                              | 28 |
| (6) Equality before the law .....                                                | 29 |
| 4.3 Dignity of men and women .....                                               | 29 |
| 4.4 Dignity protected in every condition.....                                    | 29 |
| 4.5 Social justice in an Islamic society (the 2023 note).....                    | 30 |
| (1) Meaning .....                                                                | 30 |
| (2) The pillars of social justice in Islam.....                                  | 30 |
| (3) Pakistan .....                                                               | 31 |
| Chapter 5 · The Status of Women: Before Islam and in Islam.....                  | 32 |
| 5.1 Women before Islam — the world of the 7th century.....                       | 32 |
| 5.2 The revolution Islam brought.....                                            | 33 |
| (1) The same soul — equal in humanity .....                                      | 33 |
| (2) No blame of woman for the Fall.....                                          | 33 |
| (3) Equal spiritual reward.....                                                  | 33 |
| (4) Equal in the Hereafter, equal in accountability .....                        | 33 |
| 5.3 Better rights than other systems — the comparison (2021).....                | 33 |
| Chapter 6 · Women as Daughter, Wife, Mother and Citizen .....                    | 35 |
| 6.1 As a daughter.....                                                           | 35 |
| (1) The right to life.....                                                       | 35 |
| (2) Good news, not grief.....                                                    | 35 |
| (3) Paradise for raising daughters .....                                         | 36 |
| (4) Equal love and justice among children.....                                   | 36 |
| (5) Education and upbringing.....                                                | 36 |
| (6) Consent in marriage .....                                                    | 36 |
| (7) Inheritance .....                                                            | 37 |
| (8) The model father .....                                                       | 37 |
| 6.2 How the rights of daughters are denied by Muslims today (the 2023 limb)..... | 37 |
| Pakistani law against these practices.....                                       | 37 |
| 6.3 As a wife .....                                                              | 38 |
| (1) Marriage by her consent, with mahr .....                                     | 38 |
| (2) Maintenance.....                                                             | 38 |
| (3) Kind treatment.....                                                          | 38 |
| (4) Mutual rights.....                                                           | 39 |
| (5) 'Qawwamun' — responsibility, not superiority.....                            | 39 |
| (6) Right to leave an unhappy marriage .....                                     | 40 |

|                                                                                              |    |
|----------------------------------------------------------------------------------------------|----|
| (7) Her own property, name and identity .....                                                | 40 |
| 6.4 As a mother .....                                                                        | 40 |
| 6.5 As a citizen and member of society .....                                                 | 41 |
| Chapter 7 · The Economic Rights of Women: Mahr, Nafaqah and Inheritance .....                | 42 |
| 7.1 The principle — a woman's wealth is her own .....                                        | 42 |
| 7.2 Mahr — the bridal gift.....                                                              | 42 |
| 7.3 Nafaqah — maintenance .....                                                              | 42 |
| 7.4 Inheritance — the right of women .....                                                   | 43 |
| (1) The Quranic declaration .....                                                            | 43 |
| (2) The shares of women.....                                                                 | 43 |
| (3) Why a son receives twice a daughter — the wisdom.....                                    | 44 |
| (4) Cases where the woman receives equal or more.....                                        | 44 |
| (5) No one may cut her out .....                                                             | 45 |
| (6) The Hanafi order of distribution.....                                                    | 45 |
| 7.5 The denial of women's inheritance in Pakistan .....                                      | 45 |
| Chapter 8 · Women's Rights and the Feminist Movement .....                                   | 47 |
| 8.1 Feminism — meaning and waves .....                                                       | 47 |
| 8.2 Where Islam agrees with the demands of women's movements.....                            | 47 |
| 8.3 Where Islam differs.....                                                                 | 47 |
| (1) Equality is not identity .....                                                           | 47 |
| (2) Freedom within moral limits .....                                                        | 48 |
| (3) The family, not the individual, as the unit .....                                        | 48 |
| (4) Revelation, not changing opinion, as the standard .....                                  | 48 |
| 8.4 The balanced Islamic answer — 'equity, not identity'.....                                | 48 |
| Chapter 9 · The Rights of Non-Muslims, Children, the Elderly, Workers and the Disabled ..... | 50 |
| 9.1 Rights of non-Muslims (minorities) in an Islamic state .....                             | 50 |
| (1) The Quranic principles .....                                                             | 50 |
| (2) The Prophetic guarantee .....                                                            | 50 |
| (3) Their rights.....                                                                        | 51 |
| (4) The practice.....                                                                        | 51 |
| (5) Pakistan .....                                                                           | 51 |
| 9.2 Rights of children.....                                                                  | 51 |
| 9.3 Rights of the elderly and parents .....                                                  | 52 |
| 9.4 Rights of workers.....                                                                   | 53 |
| 9.5 Rights of persons with disabilities.....                                                 | 53 |
| Chapter 10 · The Institution of the Family and Its Challenges.....                           | 54 |
| 10.1 The family in Islam — purpose and foundation.....                                       | 54 |
| 10.2 The structure of the Islamic family .....                                               | 55 |

|                                                                                      |    |
|--------------------------------------------------------------------------------------|----|
| 10.3 The functions of the family — why society's stability depends on it (2015)..... | 56 |
| 10.4 Safeguards Islam built around the family.....                                   | 56 |
| 10.5 The challenges to the family in the present era (2026).....                     | 56 |
| (1) Social and cultural.....                                                         | 56 |
| (2) Technological.....                                                               | 57 |
| (3) Economic.....                                                                    | 57 |
| (4) Ideological.....                                                                 | 57 |
| (5) Violence and injustice within families.....                                      | 57 |
| 10.6 The Islamic solutions .....                                                     | 57 |
| Part Two — Contemporary Challenges, Narratives and Hot Debates .....                 | 58 |
| 11.1 The UDHR and the Cairo Declaration — two languages of rights.....               | 58 |
| 11.2 Women's-rights campaigns in Pakistan — the balanced answer .....                | 58 |
| 11.3 Cultural practices against Islam.....                                           | 58 |
| 11.4 Family breakdown.....                                                           | 58 |
| 11.5 The elderly, children and persons with disabilities.....                        | 58 |
| Part Three — The Examiner's Record and Five Likely Questions.....                    | 60 |
| 12.1 Every question on this topic, 2015–2026.....                                    | 60 |
| 12.2 What the record teaches.....                                                    | 60 |
| 12.3 Five likely questions.....                                                      | 60 |
| Part Four — The One-Liner Bank.....                                                  | 62 |
| One-liners · Human rights in Islam.....                                              | 62 |
| One-liners · The Farewell Sermon .....                                               | 62 |
| One-liners · Islam and the UDHR.....                                                 | 62 |
| One-liners · Dignity and equality.....                                               | 63 |
| One-liners · Status of women.....                                                    | 63 |
| One-liners · Daughter, wife, mother, citizen.....                                    | 63 |
| One-liners · Economic rights and inheritance .....                                   | 64 |
| One-liners · Other rights and the family .....                                       | 64 |
| Part Five — Revision Notes · Topic 4 .....                                           | 66 |
| R4.0 The topic in ten lines.....                                                     | 66 |
| R4.1 Chapter 1 · Human rights in Islam .....                                         | 66 |
| R4.2 Chapter 2 · The Farewell Sermon.....                                            | 66 |
| R4.3 Chapter 3 · Islam and the UDHR .....                                            | 67 |
| R4.4 Chapter 4 · Dignity, equality, social justice .....                             | 67 |
| R4.5 Chapter 5 · Status of women: before and in Islam.....                           | 67 |
| R4.6 Chapter 6 · Daughter, wife, mother, citizen .....                               | 67 |
| R4.7 Chapter 7 · Economic rights .....                                               | 68 |
| R4.8 Chapter 8 · Feminism.....                                                       | 68 |

R4.9 Chapter 9 · Others' rights .....68

R4.10 Chapter 10 · The family .....68

R4.11 Part Two · Today .....69

R4.12 The figures to draw.....69

## How to Use This Document

### What this topic covers

Topic 4 carries the syllabus lines '**Human rights and status of woman in Islam**' and '**Dignity of men and women**', and the questions on the **family** that the examiner links to them. It is the **second-heaviest topic**: twelve questions in nine of the twelve papers.

| Syllabus line / past question                                                                                         | Where it is taught |
|-----------------------------------------------------------------------------------------------------------------------|--------------------|
| Human rights in Islam — concept, sources (2022)                                                                       | Chapter 1          |
| The Farewell Sermon and human rights (2020; 2023 note)                                                                | Chapter 2          |
| Islam and the UDHR — comparative and critical (2026)                                                                  | Chapter 3          |
| Dignity irrespective of colour, race and creed (2020); human dignity and greatness (2024); social justice (2023 note) | Chapter 4          |
| Status of women; better rights than other religions (2021, 2022)                                                      | Chapters 5 and 6   |
| Rights of daughters and their denial (2023)                                                                           | Chapter 6          |
| Inheritance of women (2017)                                                                                           | Chapter 7          |
| Women's rights and the feminist movement (2019)                                                                       | Chapter 8          |
| Non-Muslims, children, the elderly, workers (never asked — due)                                                       | Chapter 9          |
| The family — stability (2015) and challenges (2026)                                                                   | Chapter 10         |

Topic 4 on one page: the eight branches are the parts of this Knowledge Base.

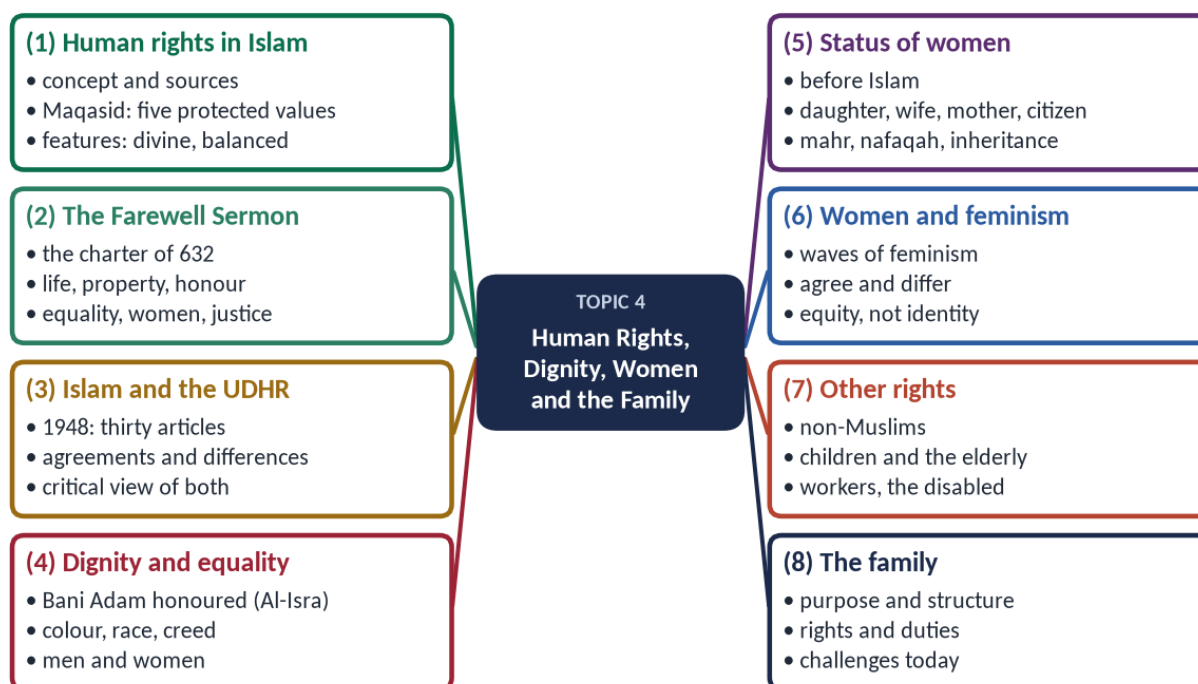


Figure 1 · Topic 4 on one page. The eight branches are the parts of this Knowledge Base.

## How this document is built

1. **Part Zero** — the ABC: the words of the topic and the map of rights.
2. **Part One** — ten chapters, divided down to four levels of headings; in every point the evidence comes **Quran → Hadith → practice of the Companions → scholars**.
3. **At-a-glance charts** after long sections — the names only, for one-look revision.
4. **Part Two** — contemporary challenges and hot debates.
5. **Part Three** — the examiner's record and five likely questions.
6. **Part Four** — the numbered one-liner bank.
7. **Part Five** — chapter-by-chapter revision notes.

### EXAMINER'S EYE · THIS TOPIC IN THE PAPER

**Women's rights five times**, each in a new frame (inheritance, feminism, comparison with other religions, human rights, daughters). **Human dignity and rights five times** (Farewell Sermon twice, colour and creed, dignity and greatness, the UDHR). **The family twice**, always 'in the present era'. The examiner rewards the **honest admission** of the gap between Islamic teaching and Muslim practice (2023: 'how these are denied by Muslims').

## Part Zero — The ABC Before the Chapters

### 0.1 The words of this topic

| Term                    | Arabic                      | Meaning in this topic                                                                    |
|-------------------------|-----------------------------|------------------------------------------------------------------------------------------|
| Huquq                   | حُقُوق                      | Rights (singular <i>haqq</i> — also 'truth').                                            |
| Huquq Allah             | حُقُوقُ اللَّهِ             | The rights of Allah: worship, obedience.                                                 |
| Huquq al-'Ibad          | حُقُوقُ الْعِبَادِ          | The rights of people — not forgiven unless the wronged person forgives.                  |
| Karamah                 | كَرَامَة                    | Dignity, honour — given to all the children of Adam (Al-Isra 70).                        |
| Musawat                 | مُسَاوَاة                   | Equality.                                                                                |
| 'Adl                    | عَدْل                       | Justice: giving everyone his due.                                                        |
| Maqasid al-Shari'ah     | مَقَاصِدُ الشَّرِيعَةِ      | The objectives of the Shari'ah: protecting faith, life, intellect, lineage and property. |
| Khutbat Hajjat al-Wada' | خُطْبَةُ حَجَّةِ الْوَدَاعِ | The Farewell Sermon (10 AH).                                                             |
| Mahr                    | مَهْر                       | The bridal gift from husband to wife — hers alone.                                       |
| Nafaqah                 | نَفَقَة                     | Maintenance: food, clothing, shelter — the husband's duty.                               |
| Mirath                  | مِيرَاث                     | Inheritance.                                                                             |
| Khula'                  | خُلْع                       | Dissolution of marriage at the wife's request.                                           |
| Qawwamun                | قَوَّامُونَ                 | Protectors and maintainers — a responsibility, not a superiority (An-Nisa 34).           |
| Dhimmi / Mu'ahad        | ذِمِّي / مُعَاهَد           | A non-Muslim citizen under the protection of an Islamic state.                           |
| Usrah                   | أُسْرَة                     | Family.                                                                                  |
| Silat al-Rahim          | صِلَةُ الرَّحِمِ            | Keeping ties with relatives.                                                             |

### 0.2 Two kinds of rights, one accountability

Islam divides all rights into **Huquq Allah** (حُقُوقُ اللَّهِ) and **Huquq al-'Ibad** (حُقُوقُ الْعِبَادِ). Allah may forgive a failure in His own rights; He does not forgive a wrong done to a person until that person forgives. This makes human rights a matter of **faith and the Hereafter**, not only of law.

## ✦ HADITH

أَتَدْرُونَ مَا الْمُفْلِسُ؟

*"Do you know who the bankrupt is?" (Muslim)*

→ The one who comes with prayer, fasting and Zakat, but had **abused, slandered and struck people** — his good deeds are given to those he wronged.

# Chapter 1 · Human Rights in Islam: Concept, Sources and Features

## 1.1 The concept of human rights

### (1) The general meaning

**Human rights** are the rights a person has **because he is a human being** — life, dignity, freedom, equality, justice, property and the basic needs of life.

### (2) The Islamic concept

In Islam, rights are **given by Allah**, the Creator, not granted by a king, parliament or the UN. They therefore:

- **cannot be taken away** by any ruler or majority;
- come **joined with duties** — every right of one person is a duty of another;
- are part of **worship and accountability** — violating them is a sin, not only a crime.

#### ★ QURAN

﴿وَلَقَدْ كَرَّمْنَا بَنِي آدَمَ وَحَمَلْنَاهُمْ فِي الْبَرِّ وَالْبَحْرِ وَرَزَقْنَاهُمْ مِنَ الطَّيِّبَاتِ وَفَضَّلْنَاهُمْ عَلَى كَثِيرٍ مِمَّنْ خَلَقْنَا تَفْضِيلًا﴾

*"And We have certainly honored the children of Adam and carried them on the land and sea and provided for them of the good things and preferred them over much of what We have created, with [definite] preference."*

(Al-Isra, Quran)

→ 'We have **honoured the children of Adam**' — dignity is a gift of Allah to every human being, before any law gives it.

## 1.2 The sources of human rights in Islam

- **(a) The Quran** — the principles: dignity (Al-Isra 70), equality (Al-Hujurat 13), justice (An-Nisa 135), life (Al-Ma'idah 32), no compulsion (Al-Baqarah 256).
- **(b) The Sunnah** — the practice: the Charter of Madinah, the Farewell Sermon, the treaties.
- **(c) The practice of the Rightly-Guided Caliphs** — accountability of rulers, welfare, rights of non-Muslims.
- **(d) Ijma' and ijihad** — the jurists' rules on the rights of the accused, prisoners, minorities and women.

## 1.3 The Maqasid al-Shari'ah — the map of rights

#### ★ SCHOLARLY VIEW

Imam al-Ghazali · Al-Mustasfa

Al-Ghazali taught that the whole Shari'ah aims to protect **five essentials**: faith (din), life (nafs), intellect ('aql), lineage (nasl) and property (mal). Whatever protects them is a benefit (maslahah); whatever harms them is a harm to be removed. Imam al-Shatibi later developed this in *Al-Muwafaqat*.

→ The **five maqasid** are the Islamic framework of human rights.

| Objective          | Arabic   | The rights it protects                                              |
|--------------------|----------|---------------------------------------------------------------------|
| Faith              | الدِّين  | Freedom of belief (no compulsion); protection of places of worship. |
| Life               | النَّفْس | Right to life; security; health; ban on murder and suicide.         |
| Intellect          | العَقْل  | Education; freedom of thought; ban on intoxicants.                  |
| Lineage and family | النَّسْل | Marriage; family; honour; rights of children.                       |
| Property           | المَال   | Ownership; earning; inheritance; ban on theft, riba and fraud.      |

## 1.4 The main human rights in Islam

### (1) The right to life

#### ✦ QURAN

﴿... مَنْ قَتَلَ نَفْسًا بِغَيْرِ نَفْسٍ أَوْ فَسَادٍ فِي الْأَرْضِ فَكَأَنَّمَا قَتَلَ النَّاسَ جَمِيعًا وَمَنْ أَحْيَاهَا فَكَأَنَّمَا أَحْيَا النَّاسَ جَمِيعًا...﴾

*"Whoever kills a soul — unless for a soul or for corruption in the land — it is as if he had slain mankind entirely; and whoever saves one, it is as if he had saved mankind entirely."* (Al-Ma'idah, Quran)

→ Killing one innocent soul is **like killing all mankind**; saving one is like saving all mankind.

### (2) The right to dignity and honour

#### ✦ QURAN

﴿... لَا يَسْخَرُ قَوْمٌ مِّن قَوْمٍ عَسَى أَن يَكُونُوا خَيْرًا مِّنْهُمْ وَلَا نِسَاءٌ مِّن نِّسَاءٍ عَسَى أَن يَكُنَّ خَيْرًا مِّنْهُنَّ...﴾

*"Let not a people ridicule another people — perhaps they are better than them; nor let women ridicule other women — perhaps they are better than them."* (Al-Hujurat, Quran)

→ No people may **mock** another — dignity protects even against ridicule.

#### ✦ HADITH

فَإِنَّ دِمَاءَكُمْ وَأَمْوَالَكُمْ وَأَعْرَاضَكُمْ عَلَيْكُمْ حَرَامٌ

*"Your lives, your property and your honour are sacred to one another."* (Al-Bukhari)

→ **Honour** (ird, عِرْض) is protected like life and property.

### (3) The right to equality

#### ✦ QURAN

﴿يَا أَيُّهَا النَّاسُ إِنَّا خَلَقْنَاهُ مِنْ ذَكَرٍ وَأُنْثَىٰ وَجَعَلْنَاهُمْ شُعُوبًا وَقَبَائِلَ لِتَعَارَفُوا إِنَّ أَكْرَمَكُمْ عِنْدَ اللَّهِ أَتَقَىٰكُمْ  
إِنَّ اللَّهَ عَلِيمٌ خَبِيرٌ﴾

*"O mankind, indeed We have created you from male and female and made you peoples and tribes that you may know one another. Indeed, the most noble of you in the sight of Allah is the most righteous of you. Indeed, Allah is Knowing and Acquainted."* (Al-Hujurat, Quran)

→ Made into nations and tribes **to know one another**; the most honoured is the most righteous.

### (4) The right to justice

#### ✦ QURAN

﴿إِنَّ اللَّهَ يَأْمُرُكُمْ أَنْ تُؤَدُّوا الْأَمَانَاتِ إِلَىٰ أَهْلِهَا وَإِذَا حَكَمْتُمْ بَيْنَ النَّاسِ أَنْ تَحْكُمُوا بِالْعَدْلِ إِنَّ اللَّهَ نِعِمَّا  
يَعِظُكُمْ بِهِ إِنَّ اللَّهَ كَانَ سَمِيعًا بَصِيرًا﴾

*"Indeed, Allah commands you to render trusts to whom they are due and when you judge between people to judge with justice. Excellent is that which Allah instructs you. Indeed, Allah is ever Hearing and Seeing."* (An-Nisa, Quran)

→ Allah commands you to render trusts to their owners and, **when you judge between people, to judge with justice.**

### (5) Freedom of religion

#### ✦ QURAN

﴿لَا إِكْرَاهَ فِي الدِّينِ قَدْ تَبَيَّنَ الرُّشْدُ مِنَ الْغَيِّ...﴾

*"There is no compulsion in religion; the right course has become clear from the wrong."* (Al-Baqarah, Quran)

→ **No compulsion in religion.**

### (6) The right to property

#### ✦ QURAN

﴿... لَا تَأْكُلُوا أَمْوَالَكُمْ بَيْنَكُمْ بِالْبُطْلِ إِلَّا أَنْ تَكُونَ تِجَارَةً عَنْ تَرَاضٍ مِّنْكُمْ...﴾

*"Do not consume one another's wealth unjustly, but only in lawful trade by mutual consent."* (An-Nisa, Quran)

→ 'Do not consume one another's wealth **unjustly**, but only in lawful trade by mutual consent.'

## (7) The right to privacy

### ✦ QURAN

﴿يَا أَيُّهَا الَّذِينَ آمَنُوا لَا تَدْخُلُوا بُيُوتًا غَيْرَ بُيُوتِكُمْ حَتَّى تَسْتَأْذِنُوا وَتُسَلِّمُوا عَلَى أَهْلِهَا ذَلِكُمْ خَيْرٌ لَّكُمْ لَعَلَّكُمْ تَذَكَّرُونَ﴾

“O you who have believed, do not enter houses other than your own houses until you ascertain welcome and greet their inhabitants. That is best for you; perhaps you will be reminded.” (An-Nur, Quran)

→ 'Do not enter houses other than your own until you have asked permission and greeted their people.'

### ✦ QURAN

﴿... أَجْتَنِبُوا كَثِيرًا مِّنَ الظَّنِّ إِنَّ بَعْضَ الظَّنِّ إِثْمٌ وَلَا تَجَسَّسُوا وَلَا يَغْتَبَ بَعْضُكُم بَعْضًا ...﴾

“Avoid much suspicion; indeed, some suspicion is sin. And do not spy, and do not backbite one another.” (Al-Hujurat, Quran)

→ Do not spy, do not backbite — **privacy and reputation** protected.

## (8) The right to freedom of opinion and to criticise rulers

### ✦ HADITH

أَفْضَلُ الْجِهَادِ كَلِمَةُ عَدْلٍ عِنْدَ سُلْطَانٍ جَائِرٍ

“The best jihad is a word of justice before a tyrant ruler.” (Abu Dawud and Al-Tirmidhi)

→ **Speaking truth to power** is worship.

## (9) The right to basic needs

### ✦ QURAN

﴿وَفِي أَمْوَالِهِمْ حَقٌّ لِّلسَّائِلِ وَالْمَحْرُومِ﴾

“And from their properties was [given] the right of the [needy] petitioner and the deprived.” (Adh-Dhariyat, Quran)

→ In their wealth is a **right for the one who asks and the deprived** — the poor have a claim, not a favour.

## (10) Personal responsibility — no collective punishment

### ✦ QURAN

﴿... وَلَا تَزِرُ وَازِرَةٌ وِزْرَ أُخْرَىٰ ...﴾

“No bearer of burdens shall bear the burden of another.” (Al-An'am, Quran)

→ 'No bearer of burdens shall bear the burden of another.'

### (11) The right to a fair trial

When a woman of Makhzum stole and her tribe sought intercession through **Usamah (RA)**, the Prophet ﷺ said:

#### ✦ HADITH

وَأَيْمُ اللَّهِ لَوْ أَنَّ فَاطِمَةَ بِنْتَ مُحَمَّدٍ سَرَقَتْ لَقَطَعْتُ يَدَهَا

“By Allah, if Fatimah the daughter of Muhammad were to steal, I would cut off her hand.” (Al-Bukhari and Muslim)

→ **Equality before the law** — the nations before were destroyed for punishing the weak and sparing the powerful.

## 1.5 The features of human rights in Islam

| Feature                          | Meaning                                                      |
|----------------------------------|--------------------------------------------------------------|
| <b>Divine</b>                    | Given by Allah — no ruler can cancel them.                   |
| <b>Universal</b>                 | For every human being — 'O mankind' (An-Nisa 1).             |
| <b>Permanent</b>                 | Not changed by elections or treaties.                        |
| <b>Balanced with duties</b>      | My right is your duty — no selfish individualism.            |
| <b>Enforced by faith and law</b> | Conscience (taqwa) and the court work together.              |
| <b>Comprehensive</b>             | Covers the unborn, the dead, animals and the environment.    |
| <b>Moral</b>                     | Rights within the limits of decency and the good of society. |

| Human rights in Islam — the names only |                                   |           |             |
|----------------------------------------|-----------------------------------|-----------|-------------|
| Concept                                | Sources                           | Maqasid   | Main rights |
| given by Allah                         | Quran                             | faith     | life        |
| cannot be taken away                   | Sunnah (Charter, Farewell Sermon) | life      | dignity     |
| joined with duties                     | the Caliphs                       | intellect | equality    |
| accountable in the Hereafter           | ijma' and ijtihad                 | lineage   | justice     |
|                                        |                                   | property  | religion    |
|                                        |                                   |           | property    |
|                                        |                                   |           | privacy     |
|                                        |                                   |           | opinion     |
|                                        |                                   |           | basic needs |
|                                        |                                   |           | fair trial  |

**Figure 2** · At a glance — human rights in Islam — the names only. The detail is in the sections above.

## Chapter 2 · The Farewell Sermon: The Charter of Human Rights

Asked in 2020 ('the basic document for awakening the conscience of mankind for human rights') and as a note in 2023.

### 2.1 The occasion

The **Farewell Sermon** — **Khutbat Hajjat al-Wada'** (خُطْبَةُ حَجَّةِ الْوَدَاعِ) — was delivered by the Prophet ﷺ on **9 Dhul Hijjah 10 AH (March 632)** at **Arafat**, before more than a hundred thousand Companions, during his only Hajj. Parts of it were repeated at **Mina** on 10 Dhul Hijjah. He died about three months later.

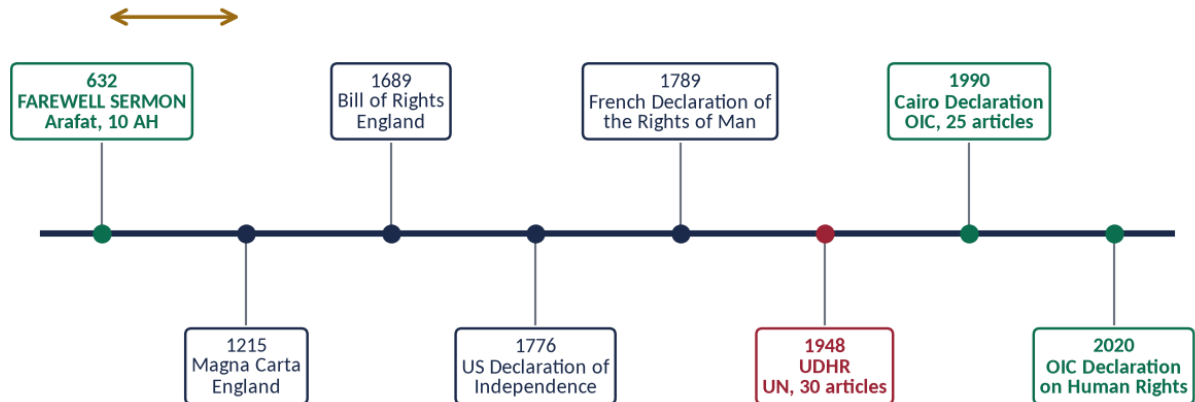
#### ✦ QURAN

﴿... الْيَوْمَ أَكْمَلْتُ لَكُمْ دِينَكُمْ وَأَتِمَمْتُ عَلَيْكُمْ نِعْمَتِي وَرَضِيتُ لَكُمُ الْإِسْلَامَ دِينًا...﴾

"This day I have perfected for you your religion, completed My favour upon you, and approved for you Islam as religion." (Al-Ma'idah, Quran)

→ 'This day I have perfected your religion for you' — revealed at Arafat on that day: the sermon stands at the completion of the religion.

about 580 years earlier than Magna Carta



The Farewell Sermon was addressed to all mankind ('O people'), not to a king's barons or one nation's citizens.

Figure 3 · The Farewell Sermon and the later charters of human rights.

## 2.2 The main declarations — each a human right

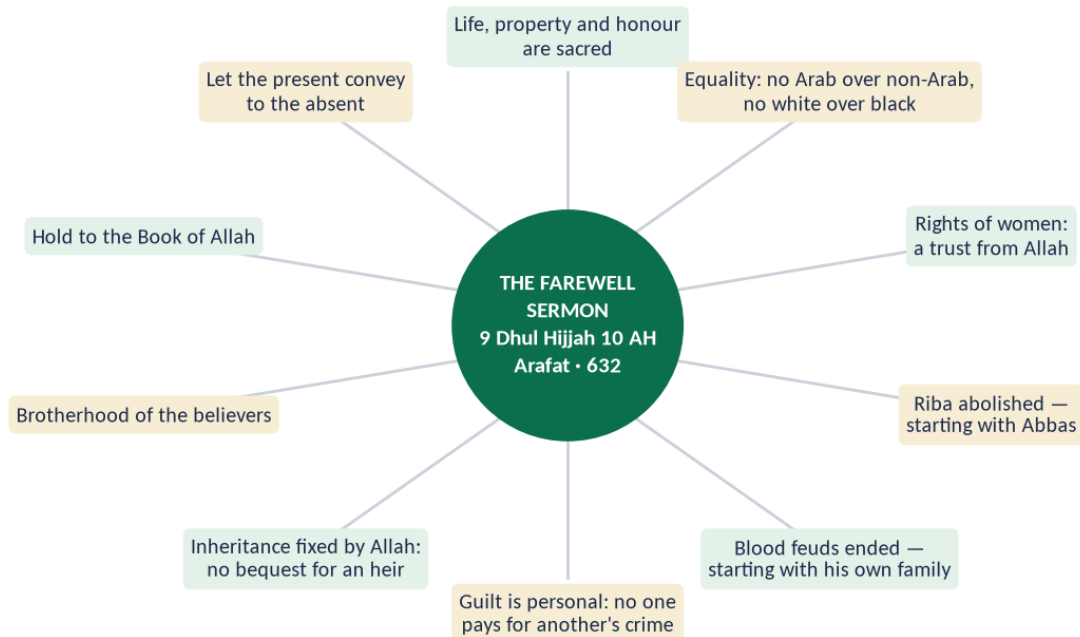


Figure 4 · The ten declarations of the Farewell Sermon.

### (1) Sanctity of life, property and honour

#### ✦ HADITH

فَإِنَّ دِمَاءَكُمْ وَأَمْوَالَكُمْ وَأَعْرَاضَكُمْ عَلَيْكُمْ حَرَامٌ، كَحُرْمَةِ يَوْمِكُمْ هَذَا، فِي شَهْرِكُمْ هَذَا، فِي بَلَدِكُمْ هَذَا

*"Your lives, your property and your honour are sacred to one another, like the sanctity of this day of yours, in this month of yours, in this city of yours." (Al-Bukhari)*

→ The **right to life, property and honour** — the first three rights of every charter.

### (2) Equality of all human beings

#### ✦ FROM THE SIRAH

يَا أَيُّهَا النَّاسُ، أَلَا إِنَّ رَبَّكُمْ وَاحِدٌ، وَإِنَّ أَبَاكُمْ وَاحِدٌ، أَلَا لَا فَضْلَ لِعَرَبِيٍّ عَلَى عَجَمِيٍّ، وَلَا لِعَجَمِيٍّ عَلَى عَرَبِيٍّ، وَلَا لِأَحْمَرَ عَلَى أَسْوَدَ، وَلَا أَسْوَدَ عَلَى أَحْمَرَ، إِلَّا بِالتَّقْوَى

*"O people, your Lord is one and your father is one. No Arab is superior to a non-Arab, nor a non-Arab to an Arab, nor a white to a black, nor a black to a white — except by taqwa." (Musnad Ahmad (the Farewell Sermon))*

→ The **abolition of racism**, 1,300 years before the civil-rights movement.

### (3) The rights of women

#### ✦ HADITH

فَاتَّقُوا اللَّهَ فِي النِّسَاءِ، فَإِنَّكُمْ أَخَذْتُمُوهُنَّ بِأَمَانٍ مِنَ اللَّهِ

“Fear Allah concerning women, for you have taken them as a trust from Allah.” (Muslim)

→ Women are a **trust (amanah)**; their maintenance and kind treatment are rights.

### (4) Abolition of riba — economic justice

#### ✦ HADITH

وَرِبَا الْجَاهِلِيَّةِ مَوْضُوعٌ، وَأَوَّلُ رِبَا أَضَعُ رِبَانَا رَبَا عَبَّاسِ بْنِ عَبْدِ الْمُطَّلِبِ

“The riba of the Jahiliyyah is abolished, and the first riba I abolish is our own — the riba of Abbas ibn Abd al-Muttalib.” (Muslim)

→ The **end of exploitation**, beginning with his own uncle.

### (5) Abolition of blood feuds

#### ✦ HADITH

وَدِمَاءُ الْجَاهِلِيَّةِ مَوْضُوعَةٌ، وَإِنَّ أَوَّلَ دِمٍ أَضَعُ مِنْ دِمَائِنَا دِمَ ابْنِ رَبِيعَةَ بْنِ الْحَارِثِ

“The blood-claims of the Jahiliyyah are abolished, and the first I abolish is that of Ibn Rabi'ah ibn al-Harith.” (Muslim)

→ **Rule of law** replaces private revenge — starting with his own family.

### (6) Personal responsibility

#### ✦ HADITH

أَلَا لَا يَجْنِي جَانٍ إِلَّا عَلَى نَفْسِهِ

“No offender is responsible except for his own offence.” (Al-Tirmidhi and Ibn Majah)

→ **No collective punishment** — no son pays for his father's crime.

### (7) Rights of inheritance

#### ✦ HADITH

إِنَّ اللَّهَ قَدْ أَعْطَى كُلَّ ذِي حَقٍّ حَقَّهُ، فَلَا وَصِيَّةَ لَوَارِثٍ

“Allah has given every rightful person his right, so there is no bequest for an heir.” (Abu Dawud and Al-Tirmidhi)

→ Shares are **fixed by Allah** — no one can cut an heir out.

### (8) Rights of servants and the weak

He told them to feed their servants from what they eat and clothe them from what they wear (Ahmad; the same in Al-Bukhari).

### (9) Brotherhood and the rule of the Book

#### ✦ HADITH

وَقَدْ تَرَكْتُ فِيكُمْ مَا لَنْ تَضِلُّوا بَعْدَهُ إِنْ اعْتَصَمْتُمْ بِهِ: كِتَابُ اللَّهِ

"I have left among you that which, if you hold fast to it, you will never go astray: the Book of Allah." (Muslim)

→ **Law above persons** — the constitution of the Ummah.

### (10) Accountability and conveying the message

#### ✦ HADITH

لِيَبْلِغَ الشَّاهِدُ الْغَائِبَ

"Let the one who is present convey to the one who is absent." (Al-Bukhari)

→ The sermon is for **all people of all times**. He asked, 'Have I conveyed?' and they said 'Yes'; he said, 'O Allah, bear witness.'

## 2.3 Why it is 'the basic document for the awakening of the conscience of mankind'

- **(a) Universal address:** 'O people' — not 'O Arabs' or 'O Muslims'.
- **(b) Earliest:** about **580 years before Magna Carta** (1215) and **1,316 years before the UDHR** (1948).
- **(c) Practical:** declared by a ruler who **enforced it first on his own family** — Abbas's riba, Rabi'ah's blood.
- **(d) Conscience, not only law:** it ties rights to **fear of Allah** — 'fear Allah concerning women' — the inner police of every heart.
- **(e) Complete:** life, property, honour, equality, women, economy, justice, inheritance, the weak.

| Right                   | Farewell Sermon (632)            | UDHR (1948)    |
|-------------------------|----------------------------------|----------------|
| Life and security       | 'Your lives are sacred'          | Article 3      |
| Property                | 'Your property is sacred'        | Article 17     |
| Honour, reputation      | 'Your honour is sacred'          | Article 12     |
| Equality, no racism     | 'No Arab over non-Arab...'       | Articles 1, 2  |
| Women's rights          | 'Fear Allah concerning women'    | Article 16     |
| Personal responsibility | 'No offender except for himself' | Article 11     |
| Economic justice        | Riba abolished                   | Articles 22–25 |

## ✦ SCHOLARLY VIEW

**Allama Muhammad Iqbal** · The Reconstruction of Religious Thought in Islam

Iqbal described the essence of Islam as spiritual democracy — the equality and freedom of all human beings under one God — which the Prophet ﷺ declared and practised.

→ The sermon is **spiritual democracy** in action.

## REMEMBER · THE SERMON IN SIX WORDS

**Life · Property · Honour · Equality · Women · Justice.** Any sermon answer can be built on these six, each with its Arabic line.

## Chapter 3 · Islam and the UDHR: A Comparative and Critical Analysis

Asked in 2026: 'a comparative and critical analysis of the human rights granted by Islam with those enshrined in the UDHR'.

### 3.1 The UDHR — the facts

- **Adopted: 10 December 1948** by the UN General Assembly in Paris (Resolution 217 A) — now **Human Rights Day**.
- **Content:** a preamble and **30 articles** — civil and political rights (Articles 3–21), economic, social and cultural rights (Articles 22–27), and duties and limits (Articles 29–30).
- **Vote: 48 in favour, none against, 8 abstentions** (the Soviet bloc, South Africa and Saudi Arabia). **Pakistan voted in favour**.
- **Status:** a **declaration**, not a treaty — morally strong, legally non-binding. It was later given legal form in the two Covenants of **1966** (ICCPR and ICESCR).
- **Background:** the horrors of the Second World War and the Holocaust.

### 3.2 The Muslim documents

- **The Farewell Sermon** (632) — the first charter.
- **The Universal Islamic Declaration of Human Rights** (1981, Islamic Council of Europe).
- **The Cairo Declaration on Human Rights in Islam** (1990, OIC — 25 articles): all rights subject to the Shari'ah.
- **The OIC Declaration on Human Rights** (2020) — a revised version of the Cairo Declaration.
- **The Constitution of Pakistan** (1973) — Chapter 1 of Part II, **Fundamental Rights**, Articles 8–28.

### 3.3 Where Islam and the UDHR agree

| Right                                    | Islam                                                     | UDHR                |
|------------------------------------------|-----------------------------------------------------------|---------------------|
| Dignity of every human                   | Al-Isra 70                                                | Preamble; Article 1 |
| Equality, no discrimination              | Al-Hujurat 13; Farewell Sermon                            | Articles 1, 2, 7    |
| Life, liberty, security                  | Al-Ma'idah 32                                             | Article 3           |
| No torture                               | Prophetic ban on mutilation and torture                   | Article 5           |
| Fair trial; innocent until proven guilty | Al-Hujurat 6; 'evidence is on the claimant' (Al-Tirmidhi) | Articles 10, 11     |
| Privacy                                  | An-Nur 27; Al-Hujurat 12                                  | Article 12          |
| Asylum                                   | At-Tawbah 6                                               | Article 14          |
| Property                                 | An-Nisa 29                                                | Article 17          |
| Social security and work                 | Zakat; 'give the worker his wage' (Ibn Majah)             | Articles 22, 23     |
| Education                                | 'Seeking knowledge is obligatory' (Ibn Majah)             | Article 26          |

### 3.4 Where they differ — the comparative analysis

#### (1) The source of rights

- **UDHR:** human agreement — 'inherent dignity' without naming its source; what humans grant, humans can change.
- **Islam: Allah** — rights are part of revelation; no state can withdraw them.

#### (2) Rights and duties

- **UDHR:** a charter of rights; duties appear only in **Article 29**.
- **Islam: rights and duties together** — every right is someone's duty (parents–children, ruler–ruled, husband–wife).

#### (3) The enforcement mechanism

- **UDHR:** non-binding; depends on states and the Security Council, where **five permanent members hold a veto**.
- **Islam:** enforced by **conscience (taqwa)**, the **state** and **accountability in the Hereafter** — the rights of people are not forgiven by Allah until the wronged forgive.

#### (4) The scope

- **UDHR:** human beings, now.
- **Islam:** also the **unborn** (no abortion without cause), the **dead** (dignity of the corpse), **animals**, the **environment**, and **future generations** (inheritance, no waste).

#### ✦ HADITH

كَسْرُ عَظْمِ الْمَيِّتِ كَكَسْرِهِ حَيًّا

"Breaking the bone of a dead person is like breaking it while he is alive." (Abu Dawud)

→ Dignity **after death**.

#### (5) Individual and society

- **UDHR:** mainly **individual** freedom.
- **Islam:** the individual **within family and society** — the family is a sacred institution, not only a private choice.

#### (6) The limits of freedom

- **UDHR:** limits only by law, for others' rights, public order and morality (Article 29(2)).
- **Islam:** freedom within the **limits of Allah** (hudud Allah) — no freedom to harm oneself, blaspheme or spread indecency.

#### (7) The points of tension

Most Muslim states entered **reservations** on two articles: **Article 16** (marriage 'without any limitation due to ... religion') and **Article 18** (freedom to 'change' one's religion). Islam affirms freedom of belief — 'no compulsion' — but places marriage and apostasy within its own family and public law; answer this point **calmly and factually**.

### 3.5 The critical analysis

#### (1) Criticism of the UDHR and its practice

- **(a) Not truly universal in origin:** only **58 states** were UN members in 1948; most of Africa and Asia were still colonies and had **no voice** in drafting it.
- **(b) Double standards:** rights are enforced selectively — **Kashmir, Palestine** and **Gaza** show the rights of some peoples ignored while others are defended.
- **(c) The veto:** five powers can block action on any violation.
- **(d) Secular individualism:** freedom without moral limits has weakened the family and produced loneliness, addiction and family breakdown in many societies.
- **(e) Rights without duties:** a culture of claims without responsibility.

#### (2) Honest self-criticism of the Muslim world

- **(a) The gap between text and practice:** denial of women's inheritance, honour killings, forced marriages, child labour, mistreatment of minorities, torture in custody — all **against Islam**, yet found in Muslim societies.
- **(b) Authoritarian rule:** the right to criticise rulers — 'a word of justice before a tyrant' — is often denied.
- **(c) Weak implementation** of the Cairo and OIC declarations.

##### ✦ SCHOLARLY VIEW

**Allama Muhammad Iqbal** · The Reconstruction of Religious Thought in Islam

Iqbal called on Muslims to rediscover the spirit of Islam — human equality, freedom and responsibility — and show it to the world in practice, rather than only claiming it.

→ The strongest answer to the West is **Muslim practice**.

#### (3) The verdict

The UDHR is a **great human achievement** that agrees with Islam on most rights; Islam gives these rights a **firmer foundation** (Allah), a **fuller scope** (family, the unborn, the dead, the environment), a **balance of rights and duties**, and a **moral enforcement** that no declaration can give. But the Islamic claim is proved only when Muslim states **practise** it.

| Islam and the UDHR — the names only |                                             |                                              |
|-------------------------------------|---------------------------------------------|----------------------------------------------|
| Agree                               | Differ                                      | Critique                                     |
| dignity                             | source: Allah vs human agreement            | UDHR: 58 states, colonies absent             |
| equality                            | rights with duties                          | double standards                             |
| life                                | enforcement: conscience + state + Hereafter | veto                                         |
| no torture                          | wider scope                                 | individualism — Muslims: the gap in practice |
| fair trial                          | family vs individual                        | authoritarian rule                           |
| privacy                             | limits of freedom                           |                                              |
| asylum                              | Articles 16 and 18                          |                                              |
| property                            |                                             |                                              |
| work                                |                                             |                                              |
| education                           |                                             |                                              |

**Figure 5** · At a glance — islam and the UDHR — the names only. The detail is in the sections above.

## Chapter 4 · Human Dignity and Equality: Men and Women, Colour, Race and Creed

Asked as 'dignity irrespective of colour, race and creed' (2020) and 'how Islam highlights human dignity and greatness' (2024).

### 4.1 The sources of human dignity in the Quran

#### (1) Honoured by Allah

##### ✦ QURAN

﴿وَلَقَدْ كَرَّمْنَا بَنِي آدَمَ وَحَمَلْنَاهُمْ فِي الْبَرِّ وَالْبَحْرِ وَرَزَقْنَاهُمْ مِّنَ الطَّيِّبَاتِ وَفَضَّلْنَاهُمْ عَلَى كَثِيرٍ مِّمَّنْ خَلَقْنَا تَفْضِيلًا﴾

*"And We have certainly honored the children of Adam and carried them on the land and sea and provided for them of the good things and preferred them over much of what We have created, with [definite] preference."*

(Al-Isra, Quran)

→ 'We have honoured the children of Adam', carried them on land and sea, provided for them and preferred them over much of creation — dignity for **every** child of Adam, whatever his faith.

#### (2) Created in the best form

##### ✦ QURAN

﴿لَقَدْ خَلَقْنَا الْإِنْسَانَ فِي أَحْسَنِ تَقْوِيمٍ﴾

*"We have certainly created man in the best of stature."* (At-Tin, Quran)

→ 'We created man in the best of stature.'

#### (3) The spirit of Allah breathed into him

##### ✦ QURAN

﴿فَإِذَا سَوَّيْتُهُ وَنَفَخْتُ فِيهِ مِن رُّوحِي فَقَعُوا لَهُ سَاجِدِينَ﴾

*"And when I have proportioned him and breathed into him of My [created] soul, then fall down to him in prostration."* (Al-Hijr, Quran)

→ 'When I have proportioned him and **breathed into him of My spirit**, fall down to him in prostration.'

#### (4) The vicegerent on earth

##### ✦ QURAN

﴿... إِنِّي جَاعِلٌ فِي الْأَرْضِ خَلِيفَةً...﴾

*"Indeed, I will make upon the earth a vicegerent (khalifah)."* (Al-Baqarah, Quran)

→ 'I will make upon the earth a vicegerent (khalifah).'

### (5) Knowledge given to him

#### ✦ QURAN

﴿وَعَلَّمَ آدَمَ الْأَسْمَاءَ كُلَّهَا ثُمَّ عَرَضَهُمْ عَلَى الْمَلَائِكَةِ فَقَالَ أَنْبِئُونِي بِأَسْمَاءِ هَؤُلَاءِ إِنْ كُنْتُمْ صَادِقِينَ﴾

*"And He taught Adam the names - all of them. Then He showed them to the angels and said, 'Inform Me of the names of these, if you are truthful.'"* (Al-Baqarah, Quran)

→ Allah **taught Adam the names** of all things — knowledge is the basis of human rank.

### (6) The angels bowed to him

#### ✦ QURAN

﴿وَإِذْ قُلْنَا لِلْمَلَائِكَةِ اسْجُدُوا لِآدَمَ فَسَجَدُوا إِلَّا إِبْلِيسَ أَبَىٰ وَاسْتَكْبَرَ وَكَانَ مِنَ الْكَافِرِينَ﴾

*"And [mention] when We said to the angels, 'Prostrate before Adam'; so they prostrated, except for Iblees. He refused and was arrogant and became of the disbelievers."* (Al-Baqarah, Quran)

→ The angels were commanded to **prostrate to Adam** — the highest honour.

### (7) The universe made subservient

#### ✦ QURAN

﴿وَسَخَّرَ لَكُم مَّا فِي السَّمُوتِ وَمَا فِي الْأَرْضِ جَمِيعًا مِنْهُ إِنَّ فِي ذَلِكَ لَآيَاتٍ لِّقَوْمٍ يَتَفَكَّرُونَ﴾

*"And He has subjected to you whatever is in the heavens and whatever is on the earth - all from Him. Indeed in that are signs for a people who give thought."* (Al-Jathiyah, Quran)

→ He has made **subject to you whatever is in the heavens and the earth** — man is master of nature, not its slave.

### (8) The trust (amanah)

#### ✦ QURAN

﴿إِنَّا عَرَضْنَا الْأَمَانَةَ عَلَى السَّمُوتِ وَالْأَرْضِ وَالْجِبَالِ فَأَبَيْنَ أَنْ يَحْمِلَهَا وَأَشْفَقْنَ مِنْهَا وَحَمَلَهَا الْإِنْسُ إِنَّهُ كَانَ ظَلُومًا جَهُولًا﴾

*"Indeed, we offered the Trust to the heavens and the earth and the mountains, and they declined to bear it and feared it; but man [undertook to] bear it. Indeed, he was unjust and ignorant."* (Al-Ahzab, Quran)

→ The heavens, the earth and the mountains declined the **trust**; man accepted it — freedom and responsibility are his greatness.

### ✦ SCHOLARLY VIEW

**Allama Muhammad Iqbal** · Bal-e-Jibril; Asrar-e-Khudi

Iqbal's philosophy of **khudi** (selfhood) teaches that man is the vicegerent of God, whose destiny is to develop his self through faith and action — so great that 'the stars are the dust of his path'.

→ The **poet of human greatness**.

## 4.2 Equality irrespective of colour, race and creed

### (1) One origin

#### ✦ QURAN

﴿يَا أَيُّهَا النَّاسُ اتَّقُوا رَبَّ الَّذِي خَلَقَكُمْ مِنْ نَفْسٍ وَاحِدَةٍ وَخَلَقَ مِنْهَا زَوْجَهَا وَبَثَّ مِنْهُمَا رِجَالًا كَثِيرًا وَنِسَاءً ۚ﴾  
﴿...﴾

"O mankind, fear your Lord, who created you from one soul, created from it its mate, and spread from both of them many men and women." (An-Nisa, Quran)

→ All mankind was created **from one soul** — there is no 'higher' race.

#### ✦ HADITH

النَّاسُ بَنُو آدَمَ، وَآدَمُ مِنْ تُرَابٍ

"People are the children of Adam, and Adam was from dust." (Abu Dawud and Al-Tirmidhi)

→ **One father, one clay** — the end of racial pride.

### (2) Diversity for recognition, not rank

#### ✦ QURAN

﴿يَا أَيُّهَا النَّاسُ إِنَّا خَلَقْنَاكُمْ مِنْ ذَكَرٍ وَأُنْثَىٰ وَجَعَلْنَاكُمْ شُعُوبًا وَقَبَائِلَ لِتَعَارَفُوا ۚ إِنَّ أَكْرَمَكُمْ عِنْدَ اللَّهِ أَتَقْوَاهُ ۚ إِنَّ اللَّهَ عَلِيمٌ خَبِيرٌ﴾

"O mankind, indeed We have created you from male and female and made you peoples and tribes that you may know one another. Indeed, the most noble of you in the sight of Allah is the most righteous of you. Indeed, Allah is Knowing and Acquainted." (Al-Hujurat, Quran)

→ Nations and tribes exist **to know one another**; the only measure of honour is **taqwa**.

#### ✦ QURAN

﴿وَمِنْ آيَاتِهِ ۖ خَلْقُ السَّمُوتِ وَالْأَرْضِ وَاخْتِلَافُ أَلْسِنَتِكُمْ وَالْوُيُوتِ ۚ إِنَّ فِي ذَلِكَ لَآيَاتٍ لِّلْعَالَمِينَ﴾

"And of His signs is the creation of the heavens and the earth and the diversity of your languages and your colors. Indeed in that are signs for those of knowledge." (Ar-Rum, Quran)

→ The **diversity of your languages and colours** is among His signs.

### (3) Allah looks at hearts, not faces

#### ✦ HADITH

إِنَّ اللَّهَ لَا يَنْظُرُ إِلَى صُورِكُمْ وَأَمْوَالِكُمْ، وَلَكِنْ يَنْظُرُ إِلَى قُلُوبِكُمْ وَأَعْمَالِكُمْ

“Allah does not look at your appearance or your wealth, but at your hearts and your deeds.” (Muslim)

→ Colour and wealth count for **nothing**.

### (4) The Sunnah in practice

- (a) **Bilal (RA)** — a black former slave from Abyssinia — was chosen to give the **adhan from the roof of the Ka'bah** at the Conquest of Makkah.
- (b) **Abu Dharr (RA)** once taunted a man about his black mother. The Prophet ﷺ said:

#### ✦ HADITH

إِنَّكَ أَمْرٌ فِيكَ جَاهِلِيَّةٌ

“You are a man in whom there is still Jahiliyyah (ignorance).” (Al-Bukhari)

→ Racism is **pre-Islamic ignorance**. Abu Dharr then dressed his servant as he dressed himself.

- (c) **Salman (RA)** the Persian: 'Salman is one of us, the people of the house' (Al-Hakim).
- (d) **Usamah ibn Zayd (RA)**, son of a freed slave, commanded an army that included senior Companions.
- (e) **Zayd ibn Harithah (RA)**, a freed slave, married **Zaynab bint Jahsh (RA)** of the Quraysh — breaking the barrier of class.

### (5) Equality of creed — dignity of non-Muslims

#### ✦ QURAN

﴿لَا إِكْرَاهَ فِي الدِّينِ قَدْ تَبَيَّنَ الرُّشْدُ مِنَ الْغَيِّ...﴾

“There is no compulsion in religion; the right course has become clear from the wrong.” (Al-Baqarah, Quran)

→ **No compulsion in religion.**

#### ✦ QURAN

﴿لَا يَنْهَى اللَّهُ عَنِ الَّذِينَ لَمْ يُقَاتِلُوكُمْ فِي الدِّينِ وَلَمْ يُخْرِجُوكُمْ مِّن دِيَارِكُمْ أَن تَبَرُّوهُمْ وَتُقْسِطُوا إِلَيْهِمْ إِنَّ اللَّهَ يُحِبُّ الْمُقْسِطِينَ﴾

“Allah does not forbid you from those who do not fight you because of religion and do not expel you from your homes - from being righteous toward them and acting justly toward them. Indeed, Allah loves those who act justly.” (Al-Mumtahanah, Quran)

→ Kindness and justice to non-Muslims who do not fight you.

He stood for a Jewish funeral: 'Is it not a soul?' (Al-Bukhari and Muslim).

## (6) Equality before the law

**Hazrat Umar (RA)** — when the son of **Amr ibn al-As**, governor of Egypt, struck an Egyptian commoner, Umar had the Egyptian strike the governor's son in return and said:

### ✦ SCHOLARLY VIEW

**Hazrat Umar Farooq (RA)** · Second Rightly-Guided Caliph, to his governor of Egypt

*"Since when have you enslaved people when their mothers bore them free?"*

→ **Freedom and equality before the law** belong to every citizen, 1,100 years before Rousseau's 'Man is born free'.

## 4.3 Dignity of men and women

### ✦ QURAN

﴿... أَنِّي لَا أُضِيعُ عَمَلَ عَمَلٍ مِّنْكُمْ مِّنْ ذَكَرٍ أَوْ أَنْتِي بِعَعْضِكُمْ مِّنْ بَعْضٍ...﴾

*"Never will I allow the work of any worker among you to be lost, whether male or female; you are of one another."* (Aal-e-Imran, Quran)

→ 'I will not allow the work of any worker to be lost, **whether male or female; you are of one another.**'

### ✦ QURAN

﴿إِنَّ الْمُسْلِمِينَ وَالْمُسْلِمَاتِ وَالْمُؤْمِنِينَ وَالْمُؤْمِنَاتِ وَالْقَنَاتِ وَالْقَنَاتِ وَالصَّادِقِينَ وَالصَّادِقَاتِ وَالصَّابِرِينَ وَالصَّابِرَاتِ وَالْخَاشِعِينَ وَالْخَاشِعَاتِ وَالْمُتَصَدِّقِينَ وَالْمُتَصَدِّقَاتِ وَالصَّامِتِينَ وَالصَّامِتَاتِ وَالْحَافِظِينَ فُرُوجَهُمْ وَالْحَافِظَاتِ وَالذَّاكِرِينَ اللَّهَ كَثِيرًا وَالذَّاكِرَاتِ أَعَدَّ اللَّهُ لَهُمْ مَغْفِرَةً وَأَجْرًا عَظِيمًا﴾

*"Indeed, the Muslim men and Muslim women, the believing men and believing women, the obedient men and obedient women, the truthful men and truthful women, the patient men and patient women, the humble men and humble women, the charitable men and charitable women, the fasting men and fasting women, the men who guard their private parts and the women who do so, and the men who remember Allah often and the women who do so - for them Allah has prepared forgiveness and a great reward."* (Al-Ahzab, Quran)

→ Muslim men and Muslim women, believing men and believing women ... **the same forgiveness and great reward** for both.

### ✦ HADITH

إِنَّمَا النِّسَاءُ شَقَائِقُ الرِّجَالِ

*"Women are the twin halves of men."* (Abu Dawud and Al-Tirmidhi)

→ **Equal in dignity**, complementary in roles.

## 4.4 Dignity protected in every condition

- **The poor:** charity 'without reminders or injury' (Al-Baqarah 264).
- **The criminal:** punished, not humiliated; the Prophet ﷺ forbade cursing a man who had been punished for drinking (Al-Bukhari).
- **The enemy:** no mutilation of the dead (Muslim).

- **The dead:** 'breaking a dead man's bone is like breaking it alive' (Abu Dawud).
- **The servant:** 'your servants are your brothers ... feed them from what you eat' (Al-Bukhari).

| Human dignity and equality — the names only |                            |                          |                               |
|---------------------------------------------|----------------------------|--------------------------|-------------------------------|
| Sources of dignity                          | Equality — race and colour | Equality — creed and law | Dignity in every condition    |
| honoured (Al-Isra 70)                       | one soul                   | no compulsion            | poor                          |
| best stature                                | 'Adam from dust'           | Al-Mumtahanah 8          | criminal                      |
| spirit breathed                             | hearts not faces           | 'is it not a soul?'      | enemy                         |
| khalifah                                    | Bilal on the Ka'bah        | Umar: 'born free'        | dead                          |
| knowledge                                   | Abu Dharr: 'Jahiliyyah'    | the Makhzumi woman       | servant                       |
| angels bowed                                | Salman                     |                          | men and women — 'twin halves' |
| universe subjected                          | Usamah                     |                          |                               |
| the trust                                   |                            |                          |                               |

Figure 6 · At a glance — human dignity and equality — the names only. The detail is in the sections above.

## 4.5 Social justice in an Islamic society (the 2023 note)

### (1) Meaning

**Social justice** — 'adl ijtimā'i (عَدْلُ اجْتِمَاعِي) — means that every member of society receives his due: equal rights before the law, fair opportunity, a share in wealth, and protection of the weak.

#### ✦ QURAN

﴿لَقَدْ أَرْسَلْنَا رُسُلَنَا بِالْبَيِّنَاتِ وَأَنْزَلْنَا مَعَهُمُ الْكِتَابَ وَالْمِيزَانَ لِيَقُومَ النَّاسُ بِالْقِسْطِ ...﴾

"We sent Our messengers with clear proofs and sent down with them the Book and the Balance, so that people may uphold justice." (Al-Hadid, Quran)

→ Messengers were sent with the Book and the Balance **so that people may uphold justice** — justice is the purpose of prophethood.

#### ✦ QURAN

﴿إِنَّ اللَّهَ يَأْمُرُ بِالْعَدْلِ وَالْإِحْسَنِ وَإِيتَايِ ذِي الْقُرْبَىٰ وَيَنْهَىٰ عَنِ الْفَحْشَاءِ وَالْمُنْكَرِ وَالْبَغْيِ يَعِظُكُمْ لَعَلَّكُمْ تَذَكَّرُونَ﴾

"Indeed, Allah orders justice and good conduct and giving to relatives and forbids immorality and bad conduct and oppression. He admonishes you that perhaps you will be reminded." (An-Nahl, Quran)

→ Allah commands **justice ('adl), excellence (ihsan) and giving to relatives.**

### (2) The pillars of social justice in Islam

- (a) **Equality before law** — 'if Fatimah stole...'
- (b) **Circulation of wealth** — Zakat, Sadaqah, inheritance, the ban on hoarding and riba:

## ✦ QURAN

﴿... كَيْ لَا يَكُونَ دُولَةٌ بَيْنَ الْأَغْنِيَاءِ مِنْكُمْ ...﴾

“... so that it does not circulate only among the rich among you.” (Al-Hashr, Quran)

→ So that wealth does **not circulate only among the rich**.

- **(c) Right of the needy** — 'in their wealth is a right for the one who asks and the deprived' (Adh-Dhariyat 19).
- **(d) Dignity of labour** — 'give the worker his wage before his sweat dries' (Ibn Majah).
- **(e) Accountability of rulers** — a Bedouin asked Umar (RA) in public how he got a long shirt from the cloth given to all; his son explained he had given his share.
- **(f) State welfare** — Umar (RA) gave stipends even to newborns and to a poor old Jew from the treasury (Abu Yusuf, *Kitab al-Kharaj*); under **Umar ibn Abd al-Aziz** no one could be found to take Zakat.

### (3) Pakistan

Article 3 (elimination of exploitation), 37 (social justice and eradication of social evils) and 38 (well-being of the people) — the Constitution copies the ideal; the gap is implementation: about 40 percent of Pakistanis live below the poverty line (World Bank, 2024–25).

## Chapter 5 · The Status of Women: Before Islam and in Islam

Asked as 'status of women in Islam' within human rights (2022) and 'better rights to men and women than all other religions' (2021).

### 5.1 Women before Islam — the world of the 7th century

| Society                   | The condition of women                                                                                                                                              |
|---------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Pre-Islamic Arabia</b> | Baby girls buried alive; no inheritance; widows inherited like property by the husband's heirs; unlimited marriages and divorces.                                   |
| <b>Greece</b>             | Aristotle called the woman an incomplete man; women were confined to the home, without education or citizenship.                                                    |
| <b>Rome</b>               | Under <i>patria potestas</i> the father or husband had near-total power over her person and property.                                                               |
| <b>Persia</b>             | Women of the lower classes had few rights; marriage to close relatives was practised among the nobility.                                                            |
| <b>India</b>              | <i>Sati</i> — burning of the widow on the husband's pyre (abolished only in 1829); widows could not remarry.                                                        |
| <b>Medieval Europe</b>    | Under English common law ( <i>coverture</i> ), a married woman's property belonged to her husband until the <b>Married Women's Property Acts of 1870 and 1882</b> . |

#### ✦ QURAN

﴿وَإِذَا بُشِّرَ أَحَدُهُم بِالْأُنثَىٰ ظَلَّ وَجْهُهُ مُسْوَدًّا وَهُوَ كَظِيمٌ ﴿١﴾ يَتَوَرَّى مِنَ الْقَوْمِ مِنْ سُوءِ مَا بُشِّرَ بِهِ ۚ أَيُمْسِكُهُ عَلَىٰ هُونٍ أَمْ يَدُسُّهُ فِي التُّرَابِ ۗ أَلَا سَاءَ مَا يَحْكُمُونَ﴾

“And when one of them is informed of [the birth of] a female, his face becomes dark, and he suppresses grief. He hides himself from the people because of the ill of which he has been informed. Should he keep it in humiliation or bury it in the ground? Unquestionably, evil is what they decide.” (An-Nahl, Quran)

→ When one of them was told of the birth of a girl, **his face darkened** — should he keep her in humiliation or bury her in the dust?

#### ✦ QURAN

﴿وَإِذَا الْمَوْءِدَةُ سُئِلَتْ ﴿١﴾ بِأَيِّ ذَنْبٍ قُتِلَتْ﴾

“And when the girl [who was] buried alive is asked. For what sin she was killed.” (At-Takwir, Quran)

→ On the Day of Judgement **the girl buried alive will be asked for what sin she was killed**.

#### TRAP · COMPARE PRACTICES, RESPECT RELIGIONS

In a comparison question (2021), compare **laws and historical practices**, not the faiths' founders or scriptures in a mocking tone. State facts (*sati*, *coverture*, the dates when Western women got property and votes) and let them speak. Respect for other religions is itself an Islamic teaching (Al-An'am 108).

## 5.2 The revolution Islam brought

### (1) The same soul — equal in humanity

#### ✦ QURAN

﴿يَا أَيُّهَا النَّاسُ اتَّقُوا رَبَّكُمُ الَّذِي خَلَقَكُمْ مِنْ نَفْسٍ وَاحِدَةٍ وَخَلَقَ مِنْهَا زَوْجَهَا وَبَثَّ مِنْهُمَا رِجَالًا كَثِيرًا وَنِسَاءً  
﴿...﴾

“O mankind, fear your Lord, who created you from one soul, created from it its mate, and spread from both of them many men and women.” (An-Nisa, Quran)

→ Men and women are created **from one soul** and its mate.

### (2) No blame of woman for the Fall

In the Quran, **Adam and Hawwa (Eve) both** were tempted, both repented, and both were forgiven (Al-A'raf 23); the woman is **not** blamed for human sin.

#### ✦ QURAN

﴿قَالَا رَبَّنَا ظَلَمْنَا أَنْفُسَنَا وَإِنْ لَمْ تَغْفِرْ لَنَا وَتَرْحَمْنَا لَنَكُونَنَّ مِنَ الْخَاسِرِينَ﴾

“They said, “Our Lord, we have wronged ourselves, and if You do not forgive us and have mercy upon us, we will surely be among the losers.” (Al-A'raf, Quran)

→ They **both** said: 'Our Lord, we have wronged ourselves; if You do not forgive us ... we will be among the losers.'

### (3) Equal spiritual reward

#### ✦ QURAN

﴿مَنْ عَمِلَ صَالِحًا مِّن ذَكَرٍ أَوْ أُنْثَىٰ وَهُوَ مُؤْمِنٌ فَلَنُحْيِيَنَّهٗ حَيٰوةً طَيِّبَةً وَلَنَجْزِيَنَّهُمْ أَجْرَهُم بِأَحْسَنِ مَا كَانُوا يَعْمَلُونَ﴾

“Whoever does righteousness, whether male or female, while he is a believer - We will surely cause him to live a good life, and We will surely give them their reward [in the Hereafter] according to the best of what they used to do.” (An-Nahl, Quran)

→ Whoever does good, **male or female**, while a believer — We will give him a good life and reward.

The same promise is repeated for believing men and women in Al-Ahzab 35 and Aal-e-Imran 195.

### (4) Equal in the Hereafter, equal in accountability

The same duties of faith, prayer, fasting, Zakat and Hajj; the same accountability.

## 5.3 Better rights than other systems — the comparison (2021)

| Right         | Islam (7th century)                      | Elsewhere                                    |
|---------------|------------------------------------------|----------------------------------------------|
| Right to life | Female infanticide banned (Al-An'am 151) | Infanticide common in many ancient societies |

| Right                           | Islam (7th century)                               | Elsewhere                                                      |
|---------------------------------|---------------------------------------------------|----------------------------------------------------------------|
| <b>Consent to marriage</b>      | Required (Al-Bukhari and Muslim)                  | Arranged without consent in much of the world                  |
| <b>Own property in her name</b> | From the start (An-Nisa 32)                       | England: 1870–1882                                             |
| <b>Inheritance</b>              | Fixed shares (An-Nisa 7, 11)                      | Excluded in many laws until the 19th–20th centuries            |
| <b>Keep her own name</b>        | Yes — never takes the husband's name by law       | Takes the husband's name in many cultures                      |
| <b>Right to divorce</b>         | Khula' (Al-Baqarah 229)                           | Divorce hardly possible in many systems until the 20th century |
| <b>Remarriage of widows</b>     | Encouraged — the Prophet ﷺ married widows         | Forbidden in some traditions                                   |
| <b>Education</b>                | 'Obligatory on every Muslim' (Ibn Majah)          | Universities closed to women until the 19th century            |
| <b>Vote / public voice</b>      | Women gave the pledge (bay'ah) — Al-Mumtahanah 12 | UK 1918/1928; USA 1920; Switzerland 1971                       |

#### ✦ SCHOLARLY VIEW

**Annie Besant** · The Life and Teachings of Muhammad (1932)

Besant, a British reformer, wrote that the Muslim woman had legal rights over her property from the beginning — long before English women won them — and judged that in this respect she was freer under Islamic law than women in the West of her day.

→ A Western reformer's verdict.

#### EXAMINER'S EYE · 'MEN AND WOMEN' IN 2021

The 2021 question said '**better rights to men and women**' — include a short section on **men's rights** too: freedom from racial and class slavery, dignity of labour, right to property and justice, and rights **against** women (respect, obedience in lawful matters within marriage, care in old age). An answer only on women loses a limb.

## Chapter 6 · Women as Daughter, Wife, Mother and Citizen

| DAUGHTER                  | WIFE                        | MOTHER                                      | CITIZEN                    |
|---------------------------|-----------------------------|---------------------------------------------|----------------------------|
| right to life (At-Takwir) | mahr — hers alone           | three times the father's right (Al-Bukhari) | equal reward (Al-Ahzab 35) |
| equal love and care       | maintenance (nafaqah)       | Paradise under her feet                     | education and work         |
| education                 | kind treatment (An-Nisa 19) | maintenance by children                     | trade and property         |
| consent in marriage       | khula; fair divorce         | inheritance: one-sixth                      | opinion and consultation   |
| inheritance               | own property and name       | honour in old age                           | protection of honour       |

Figure 7 · The rights of the woman at every stage of her life.

### 6.1 As a daughter

#### (1) The right to life

##### ✦ QURAN

﴿... وَلَا تَقْتُلُوا أَوْلَادَكُمْ مِمَّنْ إِمْلَقَ نَحْنُ نَرْزُقُكُمْ وَإِيَّاهُمْ...﴾

“Do not kill your children out of poverty; We provide for you and for them.” (Al-An'am, Quran)

→ 'Do not kill your children out of poverty; We provide for you and for them.'

#### (2) Good news, not grief

##### ✦ QURAN

﴿لِلَّهِ مُلْكُ السَّمَوَاتِ وَالْأَرْضِ يَخْلُقُ مَا يَشَاءُ يَهَبُ لِمَن يَشَاءُ إِنثًا وَيَهَبُ لِمَن يَشَاءُ الذُّكُورَ ۖ أَوْ يَزْوِجُهُمْ ذُكْرَانًا وَإِنثًا وَيَجْعَلُ مَن يَشَاءُ عَقِيمًا ۚ إِنَّهُ عَلِيمٌ قَدِيرٌ﴾

“To Allah belongs the dominion of the heavens and the earth; He creates what he wills. He gives to whom He wills female [children], and He gives to whom He wills males. Or He makes them [both] males and females, and He renders whom He wills barren. Indeed, He is Knowing and Competent.” (Ash-Shura, Quran)

→ Allah **gives daughters** to whom He wills, sons to whom He wills — daughters are a **gift**, and in the verse they are mentioned **first**.

### (3) Paradise for raising daughters

#### ✦ HADITH

مَنْ عَالَ جَارَتَيْنِ حَتَّى تَبْلُغَا، جَاءَ يَوْمَ الْقِيَامَةِ أَنَا وَهُوَ — وَضَمَّ أَصَابِعَهُ

“Whoever raises two daughters until they grow up, he and I will come on the Day of Resurrection like this — and he joined his fingers.” (Muslim)

→ The Prophet's ﷺ **company** for a good father of daughters.

#### ✦ HADITH

مَنْ ابْتُلِيَ مِنْ هَذِهِ الْبَنَاتِ بِشَيْءٍ فَأَحْسَنَ إِلَيْهِنَّ كُنَّ لَهُ سِتْرًا مِنَ النَّارِ

“Whoever is tested with daughters and treats them well, they will be a shield for him from the Fire.” (Al-Bukhari and Muslim)

→ Daughters are a **path to Paradise**, not a burden.

### (4) Equal love and justice among children

#### ✦ HADITH

اتَّقُوا اللَّهَ وَاعْدِلُوا بَيْنَ أَوْلَادِكُمْ

“Fear Allah and be just between your children.” (Al-Bukhari and Muslim)

→ No preference of sons over daughters in gifts and care.

### (5) Education and upbringing

The Prophet ﷺ gave women a separate day for learning (Al-Bukhari); Hazrat Aishah (RA) became a teacher of the senior Companions.

### (6) Consent in marriage

#### ✦ HADITH

لَا تُنْكَحُ الْأَيِّمُ حَتَّى تُسْتَأْمَرَ، وَلَا تُنْكَحُ الْبِكْرُ حَتَّى تُسْتَأْذَنَ

“A previously married woman is not married until she is consulted, and a virgin is not married until her permission is sought.” (Al-Bukhari and Muslim)

→ When **Khansa bint Khidam** was married against her will, the Prophet ﷺ **annulled** the marriage (Al-Bukhari).

## (7) Inheritance

### ✦ QURAN

﴿لِّلرِّجَالِ نَصِيبٌ مِّمَّا تَرَكَ الْوَالِدَانِ وَالْأَقْرَبُونَ وَلِلنِّسَاءِ نَصِيبٌ مِّمَّا تَرَكَ الْوَالِدَانِ وَالْأَقْرَبُونَ مِمَّا قَلَّ مِنْهُ أَوْ كَثُرَ نَصِيبًا مَّفْرُوضًا﴾

“For men is a share of what the parents and close relatives leave, and for women is a share of what the parents and close relatives leave, be it little or much - an obligatory share.” (An-Nisa, Quran)

→ For women is a **share** of what parents and relatives leave — **little or much, an obligatory share**.

## (8) The model father

He stood when **Fatimah (RA)** entered, kissed her, and seated her in his place.

### ✦ HADITH

فَاطِمَةُ بَضْعَةٌ مِنِّي، فَمَنْ أَغْضَبَهَا أَغْضَبَنِي

“Fatimah is a part of me; whoever angers her angers me.” (Al-Bukhari)

→ A daughter's honour is the **father's honour**.

## 6.2 How the rights of daughters are denied by Muslims today (the 2023 limb)

| Denial                           | Reality in society                                                                    | Islamic ruling                                    |
|----------------------------------|---------------------------------------------------------------------------------------|---------------------------------------------------|
| <b>Sex-selective neglect</b>     | Grief at a girl's birth; less food and health care for girls                          | Al-Nahl 58–59 condemns it                         |
| <b>Education</b>                 | About 26 million children out of school in Pakistan — a majority of them girls        | Knowledge is obligatory for all                   |
| <b>Forced and early marriage</b> | Marriages without consent; <i>vani</i> and <i>swara</i> (girls given to settle feuds) | Consent required; Khansa's marriage annulled      |
| <b>Denial of inheritance</b>     | Daughters pressured to 'gift' their share to brothers                                 | An-Nisa 7: an obligatory share                    |
| <b>Dowry (jahez) burden</b>      | Parents in debt; girls unmarried for lack of dowry                                    | Mahr is the husband's duty; jahez is not required |
| <b>Honour killing</b>            | Hundreds of cases a year (HRCP)                                                       | Murder — Al-Ma'idah 32                            |
| <b>Marriage to the Quran</b>     | Rare, to keep property in the family                                                  | A crime under Pakistani law (2011)                |

### Pakistani law against these practices

- **Prevention of Anti-Women Practices (Criminal Law Amendment) Act, 2011** — PPC 310A (giving a girl in badla-e-sulh, *vani*, *swara*), 498A (depriving women of inheritance), 498B (forced marriage), 498C (marriage with the Quran).
- **Criminal Law (Amendment) (Offences in the Name or Pretext of Honour) Act, 2016** — honour killing no longer escapes punishment through pardon.
- **Enforcement of Women's Property Rights Act, 2020** — speedy remedy for women denied property.

- **Constitution:** Articles **25** (no discrimination on the basis of sex), **34** (full participation of women), **35** (protection of the family, mother and child).

#### PAKISTAN · THE HONEST ADMISSION

These denials come from **tribal custom and greed**, not from Islam. The examiner asked 'how these are denied by Muslims' — say it plainly, then show that Islam is the **cure**, not the cause.

## 6.3 As a wife

### (1) Marriage by her consent, with mahr

#### ✦ QURAN

﴿وَأَتُوا النِّسَاءَ صَدُقَتِهِنَّ نِحْلَةً فَإِنْ طِبَّنَ لَكُمْ عَنْ شَيْءٍ مِّنْهُ نَفْسًا فَكُلُوهُ هَنِيئًا مَّرِيًّا﴾

*"And give the women [upon marriage] their [bridal] gifts graciously. But if they give up willingly to you anything of it, then take it in satisfaction and ease."* (An-Nisa, Quran)

→ 'Give the women their **mahr** as a free gift.'

### (2) Maintenance

#### ✦ QURAN

﴿أَسْكِنُوهُنَّ مِنْ حَيْثُ سَكَنْتُمْ مِنْ وُجْدِكُمْ وَلَا تُضَارُّوهُنَّ لِتُضَيِّقُوا عَلَيْهِنَّ...﴾

*"Lodge them where you live, according to your means, and do not harm them so as to make life hard for them."* (At-Talaq, Quran)

→ 'Lodge them where you live, according to your means, and do not harm them.'

#### ✦ QURAN

﴿وَالْوَالِدَتُ يُرْضَعْنَ حَوْلَ الْكَامِلَيْنِ لِمَنْ أَرَادَ أَنْ يُتِمَّ الرَّضَاعَةَ وَعَلَى الْمَوْلُودِ لَهُ رِزْقُهُنَّ وَكِسْوَتُهُنَّ بِالْمَعْرُوفِ...﴾

*"Mothers shall breastfeed their children two complete years ...; and upon the father is their provision and their clothing according to what is acceptable."* (Al-Baqarah, Quran)

→ Upon the father is their **provision and clothing** according to what is acceptable.

### (3) Kind treatment

#### ✦ QURAN

﴿... وَعَاشِرُوهُنَّ بِالْمَعْرُوفِ...﴾

*"And live with them in kindness."* (An-Nisa, Quran)

→ 'Live with them in kindness.'

## ✦ HADITH

أَكْمَلُ الْمُؤْمِنِينَ إِيمَانًا أَحْسَنُهُمْ خُلُقًا، وَخَيْرُكُمْ خَيْرُكُمْ لِنِسَائِهِمْ

"The most perfect believer in faith is the best in character, and the best of you are those who are best to their wives." (Al-Tirmidhi)

→ Goodness is measured **at home**.

## ✦ HADITH

اسْتَوْصُوا بِالنِّسَاءِ خَيْرًا

"Take good care of women." (Al-Bukhari and Muslim)

→ His repeated command.

#### (4) Mutual rights

## ✦ QURAN

﴿... وَلَهُنَّ مِثْلُ الَّذِي عَلَيْهِنَ بِالْمَعْرُوفِ وَلِلرِّجَالِ عَلَيْهِنَّ دَرَجَةٌ...﴾

"And women have rights similar to their obligations, according to what is reasonable; and men have a degree over them." (Al-Baqarah, Quran)

→ **Women have rights like their obligations**, according to what is reasonable.

## ✦ QURAN

﴿... هُنَّ لِبَاسٌ لَّكُمْ وَأَنْتُمْ لِبَاسٌ لَّهُنَّ...﴾

"They are clothing for you and you are clothing for them." (Al-Baqarah, Quran)

→ 'They are clothing for you and you are clothing for them' — protection, comfort and closeness on both sides.

#### (5) 'Qawwamun' — responsibility, not superiority

## ✦ QURAN

﴿الرِّجَالُ قَوَّامُونَ عَلَى النِّسَاءِ بِمَا فَضَّلَ اللَّهُ بَعْضَهُمْ عَلَى بَعْضٍ وَبِمَا أَنْفَقُوا مِنْ أَمْوَالِهِمْ...﴾

"Men are the protectors and maintainers of women, because Allah has given some of them more than others and because they spend from their wealth." (An-Nisa, Quran)

→ Men are **qawwamun** — protectors and maintainers — because they **spend from their wealth**.

The word describes a **duty of care and maintenance**, not a licence for harshness. The Prophet ﷺ never struck a woman or a servant (Muslim, from Hazrat Aishah RA), and he said of men who beat their wives, 'those are not the best of you' (Abu Dawud).

## (6) Right to leave an unhappy marriage

### ✦ QURAN

﴿الطَّلَقُ مَرَّتَانٍ فَإِمْسَاكَ بِمَعْرُوفٍ أَوْ تَسْرِيحُ بِإِحْسَنٍ...﴾

“Divorce is twice; then either keep her in an acceptable manner or release her with kindness.” (Al-Baqarah, Quran)

→ Divorce is twice; then **keep her in kindness or release her with good treatment**; the wife may free herself (khula').

The wife of **Thabit ibn Qays** came to the Prophet ﷺ; she could not live with him, and he allowed her **khula'** on returning his garden (Al-Bukhari).

## (7) Her own property, name and identity

She keeps her **own name**, her **own property** and her **own earnings**; the husband has no right to them.

## 6.4 As a mother

### ✦ QURAN

﴿وَقَضَىٰ رَبُّكَ أَلَّا تَعْبُدُوا إِلَّا إِيَّاهُ وَبِالْوَالِدَيْنِ إِحْسَنًا إِمَّا يَبُلُغَنَّ عِنْدَكَ الْكِبَرَ أَحَدُهُمَا أَوْ كِلَاهُمَا فَلَا تَقُلْ لَهُمَا أُفٍّ وَلَا تَنْهَرْهُمَا وَقُلْ لَهُمَا قَوْلًا كَرِيمًا﴾

“Your Lord has decreed that you worship none but Him, and that you be good to parents. If one or both of them reach old age with you, do not say to them even 'uff', nor repel them, but speak to them a noble word.” (Al-Isra, Quran)

→ Be **good to parents**; do not say even 'uff' to them in old age.

### ✦ QURAN

﴿وَوَصَّيْنَا الْإِنْسَانَ بِوَلَدَيْهِ حَمَلَتْهُ أُمُّهُ وَهْنًا عَلَىٰ وَهْنٍ وَفِصْلُہُ فِي عَامَيْنِ أَنِ اشْكُرْ لِي وَلِوَلَدَيْكَ إِلَيَّ الْمَصِيرُ﴾

“And We have enjoined upon man [care] for his parents. His mother carried him, [increasing her] in weakness upon weakness, and his weaning is in two years. Be grateful to Me and to your parents; to Me is the [final] destination.” (Luqman, Quran)

→ His mother carried him in **weakness upon weakness** — the Quran singles out the mother's sacrifice.

### ✦ HADITH

أُمُّكَ، ثُمَّ أُمُّكَ، ثُمَّ أُمُّكَ، ثُمَّ أَبُوكَ

“Your mother, then your mother, then your mother, then your father.” (Al-Bukhari and Muslim)

→ Asked who most deserves good company, he named the mother **three times**.

### ✦ HADITH

فَالزَّمَهَا، فَإِنَّ الْجَنَّةَ تَحْتَ رِجْلِهَا

“Stay with her, for Paradise is beneath her feet.” (Al-Nasa'i and Ibn Majah)

→ Service of the mother **before jihad**.

## 6.5 As a citizen and member of society

- **(a) Worship and knowledge:** women prayed in the Prophet's ﷺ mosque; Hazrat Aishah narrated over 2,200 hadith.
- **(b) Economic life: Khadijah (RA)** was a leading merchant of Makkah; Umar (RA) appointed **Al-Shifa bint Abdullah** to supervise the market (Ibn Abd al-Barr).
- **(c) Political voice:** women gave the **pledge (bay'ah)** to the Prophet ﷺ (Al-Mumtahanah 12); **Umm Salamah's** advice at Hudaibiyyah resolved the crisis (Al-Bukhari).
- **(d) Service in crisis: Rufaydah al-Aslamiyyah** ran a field tent for the wounded; **Nusaybah (Umm Umarah)** defended the Prophet ﷺ at Uhud.
- **(e) Protection of honour:** a false accusation of unchastity carries **eighty lashes** (An-Nur 4).

### ✦ QURAN

﴿وَالْمُؤْمِنُونَ وَالْمُؤْمِنَاتُ بَعْضُهُمْ أَوْلِيَاءُ بَعْضٍ يَأْمُرُونَ بِالْمَعْرُوفِ وَيَنْهَوْنَ عَنِ الْمُنْكَرِ ...﴾

"The believing men and believing women are allies of one another; they enjoin what is right and forbid what is wrong." **(At-Tawbah, Quran)**

→ 'The believing men and believing women are allies of one another; they enjoin good and forbid evil' — partnership in public life.

### ✦ SCHOLARLY VIEW

**Quaid-e-Azam Muhammad Ali Jinnah** · Speech at Aligarh, 1944

Jinnah said that no nation can rise to the height of glory unless its women are side by side with its men.

→ The founder of Pakistan on women's role.

### ✦ SCHOLARLY VIEW

**Allama Muhammad Iqbal** · Zarb-e-Kalim

'Wujood-e-zan se hai tasveer-e-kainat mein rang' — the colour in the picture of the universe comes from woman.

→ The poet's tribute.

## Chapter 7 · The Economic Rights of Women: Mahr, Nafaqah and Inheritance

Asked in 2017: 'a comprehensive note on the right of inheritance granted to women by Islam'.

### 7.1 The principle — a woman's wealth is her own

#### ✦ QURAN

﴿... لِلرِّجَالِ نَصِيبٌ مِّمَّا اكْتَسَبُوا وَلِلنِّسَاءِ نَصِيبٌ مِّمَّا اكْتَسَبْنَ...﴾

"For men is a share of what they have earned, and for women is a share of what they have earned." (An-Nisa, Quran)

→ 'For men is a share of what they have earned, and for women is a share of what they have earned.'

She may own, earn, trade, invest, give and bequeath **in her own name**; no father, husband or son may take it.

### 7.2 Mahr — the bridal gift

#### ✦ QURAN

﴿وَأَتُوا النِّسَاءَ صَدُقَتِهِنَّ نِحْلَةً فَإِنْ طِبَّنَ لَكُمْ عَنْ شَيْءٍ مِنْهُ نَفْسًا فَكُلُوهُ هَنِيئًا مَرِيئًا﴾

"And give the women [upon marriage] their [bridal] gifts graciously. But if they give up willingly to you anything of it, then take it in satisfaction and ease." (An-Nisa, Quran)

→ Give women their **mahr as a free gift** (nihlah).

- It is **the wife's right**, not her father's; fixed at marriage, paid **promptly** (mu'ajjal, مُعَجَّل) or **deferred** (ghair mu'ajjal, غَيْرُ مُعَجَّل), as written in the nikah nama.
- It cannot be taken back: 'even if you gave one of them a heap of gold (qintar), take nothing from it' (An-Nisa 20).
- In Pakistan it is recorded in the **nikah nama** (Muslim Family Laws Ordinance, 1961).

### 7.3 Nafaqah — maintenance

The husband must provide **food, clothing and shelter** according to his means (At-Talaq 6–7), even if the wife is rich. During the waiting period after divorce and during pregnancy, maintenance continues. A mother who nurses the child after divorce may be **paid** for it (At-Talaq 6).

## 7.4 Inheritance — the right of women

### (1) The Quranic declaration

#### ✦ QURAN

﴿لِّلرِّجَالِ نَصِيبٌ مِّمَّا تَرَكَ الْوَالِدَانِ وَالْأَقْرَبُونَ وَلِلنِّسَاءِ نَصِيبٌ مِّمَّا تَرَكَ الْوَالِدَانِ وَالْأَقْرَبُونَ مِمَّا قَلَّ مِنْهُ أَوْ كَثُرَ نَصِيبًا مَّفْرُوضًا﴾

*“For men is a share of what the parents and close relatives leave, and for women is a share of what the parents and close relatives leave, be it little or much - an obligatory share.” (An-Nisa, Quran)*

→ For men is a share of what parents and relatives leave, and **for women is a share — little or much, an obligatory share** (nasiban mafrudan).

Before Islam, Arab women inherited nothing, and widows were themselves 'inherited'. Islam made the woman an **heir** in every position — daughter, wife, mother, sister, grandmother.

#### ✦ QURAN

﴿... وَعَاشِرُوهُنَّ بِالْمَعْرُوفِ ...﴾

*“And live with them in kindness.” (An-Nisa, Quran)*

→ It is **not lawful to inherit women** against their will — the widow is a person, not property.

### (2) The shares of women

| Heir                  | Share                                                                                                    |
|-----------------------|----------------------------------------------------------------------------------------------------------|
| <b>Daughter</b>       | One alone: <b>1/2</b> ; two or more: <b>2/3</b> shared; with a son: half a son's share (An-Nisa 11)      |
| <b>Wife</b>           | <b>1/4</b> if the husband left no child; <b>1/8</b> if he left a child (An-Nisa 12)                      |
| <b>Mother</b>         | <b>1/6</b> if there are children or two or more siblings; otherwise <b>1/3</b> (An-Nisa 11)              |
| <b>Full sister</b>    | Like a daughter when there is no child or father: 1/2, 2/3; with a brother, half his share (An-Nisa 176) |
| <b>Uterine sister</b> | <b>1/6</b> ; two or more share <b>1/3</b> <b>equally with uterine brothers</b> (An-Nisa 12)              |
| <b>Grandmother</b>    | <b>1/6</b> (Sunnah)                                                                                      |

#### ✦ QURAN

﴿يُوصِيكُمُ اللَّهُ فِي أَوْلَادِكُمُ لِلذَّكَرِ مِثْلُ حَظِّ الْأُنثَيَيْنِ ...﴾

*“Allah instructs you concerning your children: for the male, the like of the share of two females.” (An-Nisa, Quran)*

→ Allah instructs you concerning your children: for the male, **the like of the share of two females**.

## ✦ QURAN

﴿... وَلَهُنَّ الرُّبْعُ مِمَّا تَرَكْتُمْ إِنْ لَمْ يَكُنْ لَكُمْ وَلَدٌ فَإِنْ كَانَ لَكُمْ وَلَدٌ فَلَهُنَّ الثُّمُنُ مِمَّا تَرَكْتُمْ...﴾

"And for the wives is one-fourth of what you leave if you have no child; but if you have a child, then for them is one-eighth." (An-Nisa, Quran)

→ For the wives is **one-fourth** if you leave no child; **one-eighth** if you leave a child.

### (3) Why a son receives twice a daughter — the wisdom

- **(a) Responsibilities differ:** the man must pay **mahr** and **maintain** his wife, children and often his parents and sisters; the woman maintains **no one**, not even herself.
- **(b) Her share is hers alone;** his share is mostly spent on others.
- **(c) She receives from several sides:** inheritance, mahr and maintenance.
- **(d) Half is only one case:** in many cases women receive **equal** or **more**.

Half is one case, not the rule: equal and greater shares for women in the Quranic system

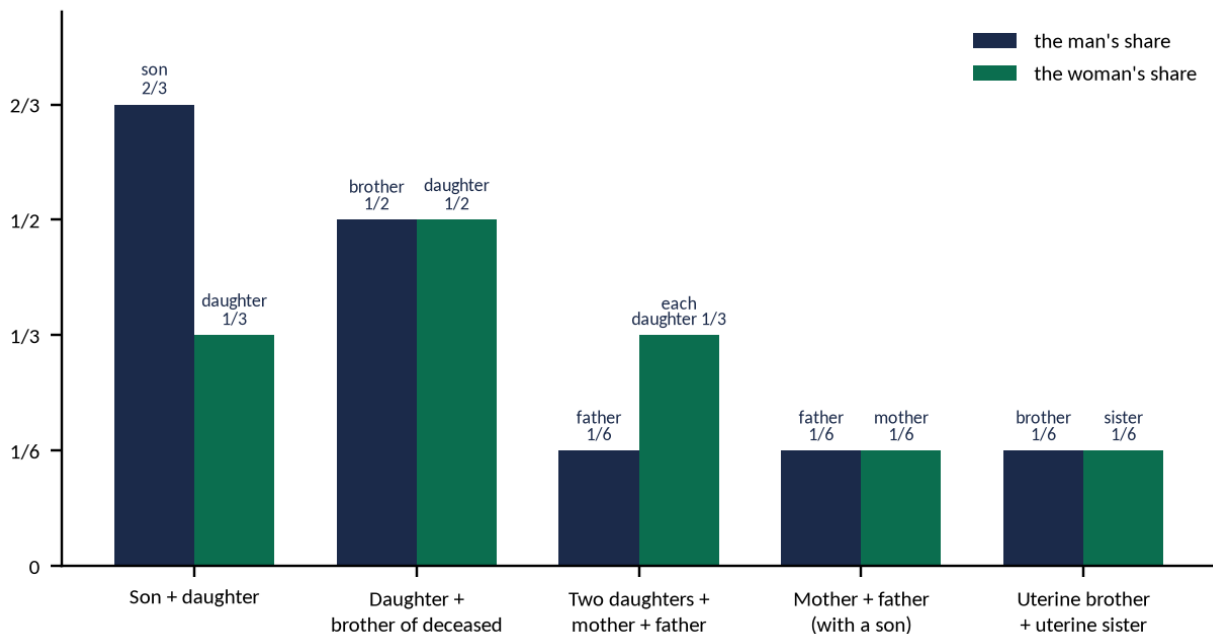


Figure 8 · Equal and greater shares for women in the Quranic system.

### (4) Cases where the woman receives equal or more

- **Father and mother** of a deceased with a son:  **$\frac{1}{6}$  each** — equal.
- **Uterine brother and sister:** equal shares.
- **Daughter** and the deceased's **brother**:  **$\frac{1}{2}$  each** — equal.
- **Two daughters, mother and father:** each daughter  **$\frac{1}{3}$** , the father  **$\frac{1}{6}$**  — the woman receives **twice** the man.

## (5) No one may cut her out

### ✦ HADITH

إِنَّ اللَّهَ قَدْ أَعْطَى كُلَّ ذِي حَقٍّ حَقَّهُ، فَلَا وَصِيَّةَ لَوَارِثٍ

“Allah has given every rightful person his right; there is no bequest for an heir.” (Abu Dawud and Al-Tirmidhi)

→ The shares are **fixed by Allah**.

### ✦ QURAN

﴿...وَمَنْ يَعْصِ اللَّهَ وَرَسُولَهُ وَيَتَعَدَّ حُدُودَهُ يُدْخِلْهُ نَارًا خَالِدًا فِيهَا وَلَهُ عَذَابٌ مُهِينٌ﴾

“And whoever disobeys Allah and His Messenger and transgresses His limits — He will put him into the Fire to abide therein, and he will have a humiliating punishment.” (An-Nisa, Quran)

→ These are **the limits of Allah**; whoever disobeys Allah and His Messenger and transgresses His limits enters the Fire — the warning after the inheritance verses.

## (6) The Hanafi order of distribution

From the estate: **(1)** funeral expenses → **(2)** debts (including unpaid mahr) → **(3)** bequest up to **one-third**, not for an heir → **(4)** the rest to the heirs: first the **sharers** (ashab al-furud), then the **residuaries** ('asabah).

## 7.5 The denial of women's inheritance in Pakistan

- **Custom:** daughters and sisters asked to give up their share ('**haq bakhshwana**') for the sake of brothers or to keep land in the family.
- **Law:** PPC 498A (2011) — depriving a woman of inheritance by deceit or coercion is a crime (5–10 years); the **Enforcement of Women's Property Rights Act 2020** — an ombudsperson to restore property quickly; the **Supreme Court** has held that a 'relinquishment' by a woman must be free and informed.

### TRAP · 'HALF THE SHARE' IS NOT 'HALF THE VALUE'

Never write that Islam values a woman at half a man. The **2:1 rule** in one situation is balanced by the **man's financial duties**; in many situations women receive **equal or more**. Show the table and the figure.

| The economic rights of women — the names only |                             |                                |                                |
|-----------------------------------------------|-----------------------------|--------------------------------|--------------------------------|
| Ownership                                     | Mahr                        | Nafaqah                        | Inheritance                    |
| own, earn, trade in her name (An-Nisa 32)     | a free gift (An-Nisa 4)     | food, clothing, shelter        | An-Nisa 7: obligatory share    |
| keeps her property and name                   | her right, not her father's | even if she is rich            | daughter, wife, mother, sister |
|                                               | cannot be taken back        | paid for nursing after divorce | 2:1 balanced by duties         |
|                                               |                             |                                | equal or more in many cases    |
|                                               |                             |                                | PPC 498A                       |
|                                               |                             |                                | 2020 Act                       |

Figure 9 · At a glance — the economic rights of women — the names only. The detail is in the sections above.

## Chapter 8 · Women's Rights and the Feminist Movement

Asked in 2019: 'the rights of women in Islam in the context of the current wave of the feminist movement'.

### 8.1 Feminism — meaning and waves

**Feminism** is the movement for the political, economic and social equality of women with men.

| Wave               | Period      | Main demands                                                                                                                                                   |
|--------------------|-------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>First wave</b>  | 1848–1920   | Right to vote and to own property (Seneca Falls, 1848; US vote 1920)                                                                                           |
| <b>Second wave</b> | 1960s–1980s | Equal pay, work, education, reproductive and family law (Simone de Beauvoir, <i>The Second Sex</i> , 1949; Betty Friedan, <i>The Feminine Mystique</i> , 1963) |
| <b>Third wave</b>  | 1990s–2000s | Diversity of women's experience; identity; choice                                                                                                              |
| <b>Fourth wave</b> | 2010s–      | Online activism, harassment and violence (#MeToo, 2017); body autonomy                                                                                         |

In Pakistan, women's rights work has a long history — **Fatima Jinnah**; **Begum Ra'ana Liaquat Ali Khan** (founded APWA, 1949); the laws of 2010–2020 against harassment and anti-women practices. Recent street marches and social-media campaigns have sharpened the debate.

### 8.2 Where Islam agrees with the demands of women's movements

| Demand                               | Islamic teaching                                                     |
|--------------------------------------|----------------------------------------------------------------------|
| <b>Dignity and equality of worth</b> | One soul (An-Nisa 1); 'women are the twin halves of men' (Abu Dawud) |
| <b>Education</b>                     | Obligatory on every Muslim (Ibn Majah); a day for women (Al-Bukhari) |
| <b>Property and earning</b>          | An-Nisa 32: her earning is hers                                      |
| <b>Consent in marriage</b>           | Khansa's marriage annulled (Al-Bukhari)                              |
| <b>Right to divorce</b>              | Khula' (Al-Baqarah 229)                                              |
| <b>Protection from violence</b>      | 'Those who beat their wives are not the best of you' (Abu Dawud)     |
| <b>Protection from harassment</b>    | Lowering the gaze (An-Nur 30); penalty for slander (An-Nur 4)        |
| <b>Public participation</b>          | Bay'ah of women; Umm Salamah's counsel; Al-Shifa in the market       |

### 8.3 Where Islam differs

#### (1) Equality is not identity

Islam gives **equal dignity** but **different, complementary roles** — the man as maintainer, the woman free of financial duty; both partners in the home.

## ✦ QURAN

﴿... لِلرِّجَالِ نَصِيبٌ مِّمَّا كَتَبُوا وَلِلنِّسَاءِ نَصِيبٌ مِّمَّا كَتَبْنَ ...﴾

"For men is a share of what they have earned, and for women is a share of what they have earned." (An-Nisa, Quran)

→ 'Do not wish for that by which Allah has given some of you more than others' — **for men a share of what they earned, and for women a share of what they earned.**

## (2) Freedom within moral limits

Islam rejects sexual freedom outside marriage and the commercial use of the woman's body in advertising — which it sees as **exploitation**, not liberation.

## ✦ QURAN

﴿قُلْ لِلْمُؤْمِنِينَ يَغُضُّوا مِنْ أَبْصَارِهِمْ وَيَحْفَظُوا فُرُوجَهُمْ ذَلِكَ أَزْكَى لَهُمْ إِنَّ اللَّهَ خَبِيرٌ بِمَا يَصْنَعُونَ﴾

"Tell the believing men to reduce [some] of their vision and guard their private parts. That is purer for them. Indeed, Allah is Acquainted with what they do." (An-Nur, Quran)

→ **The believing men** are told first to lower their gaze and guard their chastity — the moral duty begins with men.

## (3) The family, not the individual, as the unit

Some strands of feminism treat marriage and motherhood as oppression; Islam treats them as **worship** and gives the mother **three times** the father's right.

## (4) Revelation, not changing opinion, as the standard

Rights fixed by Allah — inheritance, mahr, maintenance — are **not open to repeal** by majority vote.

## 8.4 The balanced Islamic answer — 'equity, not identity'

- (a) Support every just demand: education, work with dignity, safety, inheritance, consent.
- (b) Separate **Islam from culture**: most oppression of women in Muslim lands — honour killing, denial of inheritance, forced marriage — is **tribal custom**, condemned by Islam.
- (c) Reject slogans that attack the family or modesty.
- (d) Present the **Prophetic model**: Khadijah the merchant, Aishah the scholar, Umm Salamah the counsellor, Nusaybah the defender.

## ✦ SCHOLARLY VIEW

Allama Muhammad Iqbal · Zarb-e-Kalim (poems on women)

Iqbal honoured the woman as the source of the nation's strength, but warned that a freedom that separates her from her role as the maker of character would harm both her and society.

→ **Honour with balance.**

**DEBATE · IS ISLAMIC FEMINISM POSSIBLE?**

Some Muslim women scholars argue for rights **from within the Quran and Sunnah** — rereading texts that culture had distorted. This is valid **when it follows sound principles of interpretation**; it fails when it rejects clear texts (inheritance, qawwamah) to fit Western theory. The safe position for the paper: **Islam already gave the rights; the task is to implement them.**

## Chapter 9 · The Rights of Non-Muslims, Children, the Elderly, Workers and the Disabled

Never asked directly — likely.

### 9.1 Rights of non-Muslims (minorities) in an Islamic state

#### (1) The Quranic principles

##### ✦ QURAN

﴿لَا إِكْرَاهَ فِي الدِّينِ قَدْ تَبَيَّنَ الرُّشْدُ مِنَ الْغَيِّ...﴾

“There is no compulsion in religion; the right course has become clear from the wrong.” (Al-Baqarah, Quran)

→ No compulsion in religion.

##### ✦ QURAN

﴿لَا يَنْهَىكُمُ اللَّهُ عَنِ الَّذِينَ لَمْ يُقْتُلُوكُمْ فِي الدِّينِ وَلَمْ يُخْرِجُوكُمْ مِّنْ دِيَارِكُمْ أَن تَبَرُّوهُمْ وَتُقْسِطُوا إِلَيْهِمْ إِنَّ اللَّهَ يُحِبُّ الْمُقْسِطِينَ﴾

“Allah does not forbid you from those who do not fight you because of religion and do not expel you from your homes - from being righteous toward them and acting justly toward them. Indeed, Allah loves those who act justly.” (Al-Mumtahanah, Quran)

→ Allah does not forbid you **kindness and justice** to those who do not fight you.

##### ✦ QURAN

﴿... وَلَوْلَا دَفْعُ اللَّهِ النَّاسَ بَعْضَهُمْ بِبَعْضٍ لَّهَدَمَتْ صُومُعٌ وَبَيْعٌ وَصَلَوَاتٌ وَمَسْجِدٌ يُذَكَّرُ فِيهَا اسْمُ اللَّهِ كَثِيرًا...﴾

“Were it not that Allah checks some people by means of others, monasteries, churches, synagogues and mosques — in which Allah's name is much mentioned — would have been demolished.” (Al-Hajj, Quran)

→ Monasteries, churches and synagogues are **protected** alongside mosques.

#### (2) The Prophetic guarantee

##### ✦ HADITH

أَلَا مَنْ ظَلَمَ مُعَاهِدًا، أَوْ انْتَقَصَهُ، أَوْ كَلَّفَهُ فَوْقَ طَاقَتِهِ، أَوْ أَخَذَ مِنْهُ شَيْئًا بِغَيْرِ طِيبِ نَفْسٍ، فَأَنَا حَجِيجُهُ يَوْمَ الْقِيَامَةِ

“Beware: whoever wrongs a non-Muslim under covenant, belittles him, burdens him beyond his ability or takes anything from him without his consent — I will argue against him on the Day of Resurrection.” (Abu Dawud)

→ The Prophet ﷺ is the **advocate of the minority**.

## ★ HADITH

مَنْ قَتَلَ مُعَاهِدًا لَمْ يَرِحْ رَائِحَةَ الْجَنَّةِ

"Whoever kills a non-Muslim under covenant will not smell the fragrance of Paradise." (Al-Bukhari)

### (3) Their rights

Life, property and honour; freedom of worship and places of worship (Najran treaty); their own personal law; justice in court; social welfare; exemption from military service (the jizyah in its place).

### (4) The practice

- **Umar (RA)** gave an old, blind Jew a stipend from the treasury: 'We took jizyah from him in his youth; we will not abandon him in his old age' (Abu Yusuf, *Kitab al-Kharaj*).
- **Ali (RA)**, as Caliph, lost a case over his shield to a non-Muslim before **Qadi Shurayh** because he lacked proper witnesses — the man accepted Islam on seeing such justice.
- **Umar (RA)** declined to pray inside the Church of the Holy Sepulchre in Jerusalem, so that Muslims would not later claim it.

### (5) Pakistan

Articles **20** (freedom of religion), **22** (safeguards in education), **36** (protection of minorities), **Objectives Resolution** ('adequate provision ... for minorities to freely profess and practise their religions'); **reserved seats** in the assemblies; the Quaid's speech of **11 August 1947**.

## 9.2 Rights of children

## ★ QURAN

﴿... وَلَا تَقْتُلُوا أَوْلَادَكُمْ مِمَّنْ إِمْلَقَ نَحْنُ نَرْزُقُكُمْ وَإِيَّاهُمْ ...﴾

"Do not kill your children out of poverty; We provide for you and for them." (Al-An'am, Quran)

→ **Do not kill your children** out of poverty.

## ★ QURAN

﴿وَالْوَالِدَتُ يُرْضِعْنَ أَوْلَدَهُنَّ حَوْلَيْنِ كَامِلَيْنِ لِمَنْ أَرَادَ أَنْ يُنَمَّ الرِّضَاعَةَ وَعَلَى الْمَوْلُودِ لَهُ رِزْقُهُنَّ وَكِسْوَتُهُنَّ بِالْمَعْرُوفِ ...﴾

"Mothers shall breastfeed their children two complete years ...; and upon the father is their provision and their clothing according to what is acceptable." (Al-Baqarah, Quran)

→ **Breastfeeding for two years** and the father's duty to provide.

## ✦ QURAN

﴿يَا أَيُّهَا الَّذِينَ ءَامَنُوا قُوا أَنْفُسَكُمْ وَأَهْلِيكُمْ نَارًا وَقُودُهَا النَّاسُ وَالْحِجَارَةُ عَلَيْهَا مَلَائِكَةٌ غِلَظٌ شِدَادٌ لَا يَعْصُونَ اللَّهَ مَا أَمَرَهُمْ وَيَفْعَلُونَ مَا يُؤْمَرُونَ﴾

*"O you who have believed, protect yourselves and your families from a Fire whose fuel is people and stones, over which are [appointed] angels, harsh and severe; they do not disobey Allah in what He commands them but do what they are commanded."* (At-Tahrim, Quran)

→ 'Protect yourselves and your families from a Fire' — moral upbringing is a duty.

## ✦ HADITH

كُلُّكُمْ رَاعٍ وَكُلُّكُمْ مَسْئُولٌ عَنْ رَعِيَّتِهِ

*"Each of you is a shepherd, and each of you is responsible for his flock."* (Al-Bukhari and Muslim)

→ Parents **answer** for their children.

Rights: life, lineage (legitimacy), a good name, nursing and maintenance, education, love and equal treatment, protection from harm and exploitation. The Prophet ﷺ lengthened a prostration while his grandson rode on his back, and kissed Hasan (RA), saying 'whoever does not show mercy will not be shown mercy' (Al-Bukhari).

**Pakistan:** Article 11(3) — no child under 14 in factories and hazardous work; 25-A — free and compulsory education (5–16); child labour remains widespread.

### 9.3 Rights of the elderly and parents

## ✦ QURAN

﴿وَقَضَىٰ رَبُّكَ أَلَّا تَعْبُدُوا إِلَّا إِيَّاهُ وَبِالْوَالِدَيْنِ إِحْسَانًا إِمَّا يَبُلُغَنَّ عِنْدَكَ الْكِبَرَ أَحَدُهُمَا أَوْ كِلَاهُمَا فَلَا تَقُلْ لَهُمَا أُفٍّ وَلَا تَنْهَرْهُمَا وَقُلْ لَهُمَا قَوْلًا كَرِيمًا﴾

*"Your Lord has decreed that you worship none but Him, and that you be good to parents. If one or both of them reach old age with you, do not say to them even 'uff', nor repel them, but speak to them a noble word."* (Al-Isra, Quran)

→ Do not say **even 'uff'** to parents in old age; speak to them a noble word.

## ✦ HADITH

لَيْسَ مِنَّا مَنْ لَمْ يَرْحَمْ صَغِيرَنَا وَيُوقِّرْ كَبِيرَنَا

*"He is not one of us who does not show mercy to our young and respect to our elders."* (Al-Tirmidhi)

The Prophet ﷺ said: 'Let him be humbled, let him be humbled' — the one whose parents reach old age with him and he does not enter Paradise by serving them (Muslim).

## 9.4 Rights of workers

### ✦ HADITH

أَعْطُوا الْأَجِيرَ أَجْرَهُ قَبْلَ أَنْ يَجِفَّ عَرَقُهُ

"Give the worker his wage before his sweat dries." (Ibn Majah)

→ Prompt and fair wages.

### ✦ HADITH

إِخْوَانُكُمْ خَوَلُكُمْ ... فَلْيُطْعِمُوهُمْ مِمَّا يَأْكُلُونَ، وَلْيَلْبَسُوهُمْ مِمَّا يَلْبَسُونَ، وَلَا تَكْلِفُوهُمْ مَا يَغْلِبُهُمْ

"Your servants are your brothers ... feed them from what you eat, clothe them from what you wear, and do not burden them beyond their strength." (Al-Bukhari)

→ Dignity, decent living and reasonable hours.

## 9.5 Rights of persons with disabilities

### ✦ QURAN

﴿عَبَسَ وَتَوَلَّى أَنْ جَاءَهُ الْأَعْمَى﴾

"The Prophet frowned and turned away. Because there came to him the blind man, [interrupting]." (Abasa, Quran)

→ 'He frowned and turned away because the blind man came to him' — the Prophet ﷺ was corrected for not attending to Abdullah ibn Umm Maktum (RA).

Afterwards he honoured him and **appointed him his deputy over Madinah** more than once, and he gave the adhan. Islam exempts the disabled from what they cannot do (An-Nur 61) and gives them a claim on public welfare.

| Rights of other groups — the names only                                                                                            |                                                                                             |                                                                  |                                                                               |                                                                      |
|------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------|------------------------------------------------------------------|-------------------------------------------------------------------------------|----------------------------------------------------------------------|
| Non-Muslims                                                                                                                        | Children                                                                                    | The elderly                                                      | Workers                                                                       | The disabled                                                         |
| no compulsion<br>'I will argue against him' (Abu Dawud)<br>Umar's stipend for the old Jew<br>Ali and the shield<br>Articles 20, 36 | life<br>nursing two years<br>upbringing (At-Tahrim 6)<br>equal love<br>Articles 11(3), 25-A | not even 'uff'<br>respect for elders<br>Paradise through parents | wage before sweat dries<br>brothers — same food and clothing<br>no overburden | Abasa: Ibn Umm Maktum<br>deputy of Madinah<br>exemptions and welfare |

Figure 10 · At a glance — rights of other groups — the names only. The detail is in the sections above.

## Chapter 10 · The Institution of the Family and Its Challenges

Asked as 'stability of modern society depends upon a strong family system' (2015) and 'the challenges for the institution of family and its role in the present era' (2026).

### 10.1 The family in Islam — purpose and foundation

#### ✦ QURAN

﴿يَا أَيُّهَا النَّاسُ اتَّقُوا رَبَّكُمُ الَّذِي خَلَقَكُمْ مِنْ نَفْسٍ وَاحِدَةٍ وَخَلَقَ مِنْهَا زَوْجَهَا وَبَثَّ مِنْهُمَا رِجَالًا كَثِيرًا وَنِسَاءً  
﴿...﴾

*"O mankind, fear your Lord, who created you from one soul, created from it its mate, and spread from both of them many men and women."* (An-Nisa, Quran)

→ All people come **from one soul and its mate** — the family is the first human institution, older than any state.

#### ✦ QURAN

﴿وَمِنْ آيَاتِهِ أَنْ خَلَقَ لَكُمْ مِنْ أَنْفُسِكُمْ أَزْوَاجًا لِتَسْكُنُوا إِلَيْهَا وَجَعَلَ بَيْنَكُمْ مَوَدَّةً وَرَحْمَةً إِنَّ فِي ذَلِكَ لَآيَاتٍ لِقَوْمٍ يَتَفَكَّرُونَ﴾

*"And of His signs is that He created for you from yourselves mates that you may find tranquillity in them; and He placed between you affection and mercy. Indeed in that are signs for a people who give thought."* (Ar-Rum, Quran)

→ He created mates for you **that you may find tranquillity in them**, and placed between you **love and mercy** (mawaddah wa rahmah).

#### ✦ QURAN

﴿وَالَّذِينَ يَقُولُونَ رَبَّنَا هَبْ لَنَا مِنْ أَزْوَاجِنَا وَذُرِّيَّاتِنَا قُرَّةَ أَعْيُنٍ وَاجْعَلْنَا لِلْمُتَّقِينَ إِمَامًا﴾

*"And those who say, "Our Lord, grant us from among our wives and offspring comfort to our eyes and make us an example for the righteous."* (Al-Furqan, Quran)

→ 'Our Lord, grant us from our spouses and children **the comfort of our eyes**.'

#### ✦ HADITH

النِّكَاحُ مِنْ سُنَّتِي، فَمَنْ لَمْ يَعْمَلْ بِسُنَّتِي فَلَيْسَ مِنِّي

*"Marriage is my Sunnah; whoever does not act on my Sunnah is not of me."* (Ibn Majah)

→ Marriage is **worship and Sunnah**.

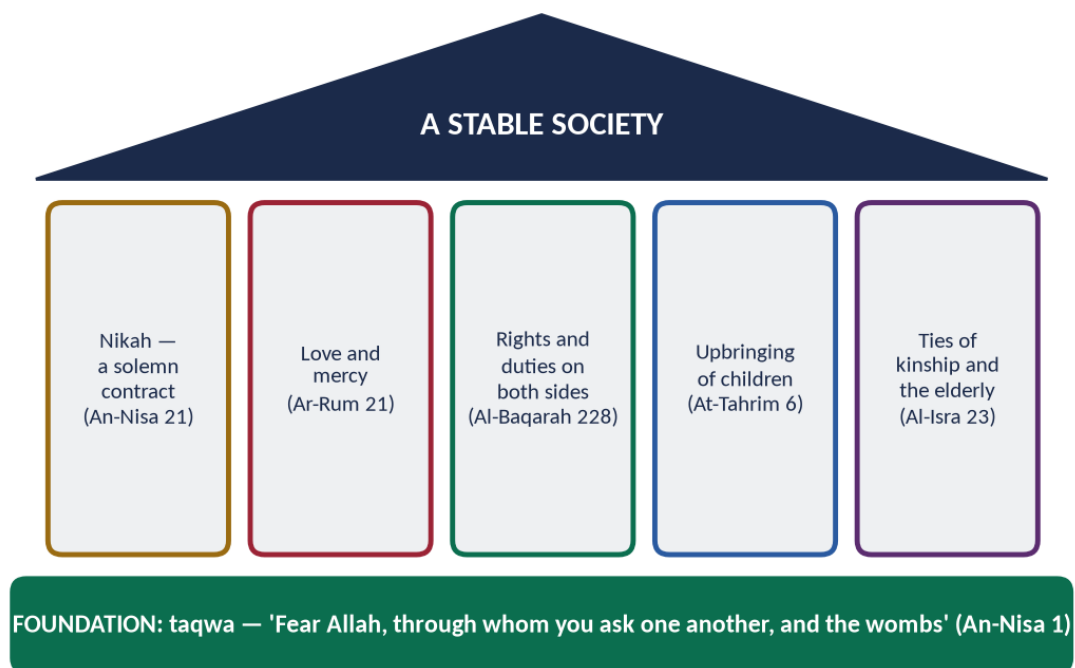
✦ SCHOLARLY VIEW

**Shah Waliullah Dehlawi** · Hujjat Allah al-Baligha

Shah Waliullah described the household (tadbir al-manzil) as the second stage of human civilisation after individual needs: from it come the neighbourhood, the city and the state; if the household is corrupt, all higher stages are corrupted.

→ The family is **the base of civilisation**.

## 10.2 The structure of the Islamic family



**Figure 11** · The Islamic family: a foundation of taqwa, five pillars, and a stable society on top.

- **(a) Nikah — a solemn contract:** 'they have taken from you a **firm covenant**' (An-Nisa 21) — with consent, witnesses and mahr.
- **(b) Love and mercy** (Ar-Rum 21).
- **(c) Rights and duties on both sides** (Al-Baqarah 228).
- **(d) Upbringing of children** (At-Tahrim 6).
- **(e) Extended ties:** parents (Al-Isra 23), relatives (silat al-rahim), neighbours (An-Nisa 36).

✦ HADITH

مَنْ أَحَبَّ أَنْ يُبَسَّطَ لَهُ فِي رِزْقِهِ، وَيُنْسَأَ لَهُ فِي أَثَرِهِ، فَلْيَصِلْ رَحِمَهُ

*"Whoever wishes his provision to be increased and his life to be extended, let him keep ties with his relatives."*

(Al-Bukhari and Muslim)

→ **Kinship ties** bring blessing.

## 10.3 The functions of the family — why society's stability depends on it (2015)

| Function                       | How it keeps society stable                                        |
|--------------------------------|--------------------------------------------------------------------|
| <b>Moral training</b>          | The first school — honesty, respect and faith learned at home      |
| <b>Emotional security</b>      | Love and mercy prevent loneliness, depression and addiction        |
| <b>Protection of lineage</b>   | Clear parentage; rights of inheritance and names                   |
| <b>Control of desire</b>       | Marriage channels desire lawfully; reduces crime and disease       |
| <b>Economic security</b>       | Maintenance of wife, children, parents; inheritance                |
| <b>Care of the weak</b>        | Children, the elderly and the disabled cared for without the state |
| <b>Social cohesion</b>         | Kinship ties connect families into communities                     |
| <b>Transmission of culture</b> | Language, religion and values passed on                            |

## 10.4 Safeguards Islam built around the family

- **Chastity and modesty** (An-Nur 30–31); ban on zina and slander (An-Nur 2, 4).
- **Arbitration before divorce:**

### ✦ QURAN

﴿وَإِنْ خِفْتُمْ شِقَاقَ بَيْنِهِمَا فَابْعَثُوا حَكَمًا مِّنْ أَهْلِهِ ۖ وَحَكَمًا مِّنْ أَهْلِهَا إِن يُرِيدَا إِصْلَاحًا يُوَفِّقِ اللَّهُ بَيْنَهُمَا ۚ إِنَّ اللَّهَ كَانَ عَلِيمًا خَبِيرًا﴾

*“And if you fear dissension between the two, send an arbitrator from his people and an arbitrator from her people. If they both desire reconciliation, Allah will cause it between them. Indeed, Allah is ever Knowing and Acquainted [with all things].” (An-Nisa, Quran)*

→ If you fear a breach, **appoint an arbiter from his family and an arbiter from her family**; if they want reconciliation, Allah will bring it about.

- **Divorce as the last resort** — in stages, with a waiting period (iddah) for reconsideration; the widely quoted report 'the most hated of lawful things to Allah is divorce' (Abu Dawud) expresses the spirit of An-Nisa 35.
- **Privacy of the home** (An-Nur 27).

## 10.5 The challenges to the family in the present era (2026)

### (1) Social and cultural

- **(a) From joint to nuclear family** — urbanisation; the elderly left alone; old-age homes.
- **(b) Rising divorce and khula'** — family courts in Pakistan's big cities hear many thousands of cases a year.
- **(c) Late marriage and dowry** — expensive weddings and jahez delay marriage.
- **(d) Weakening of kinship ties** and neighbourhood.

## (2) Technological

- **(a) Social media and screens** — less time together; comparison and jealousy; online harassment; exposure of children to indecent content.
- **(b) The generation gap** — parents and children living in different worlds.

## (3) Economic

- **(a) Inflation and unemployment** — stress, quarrels, both parents working long hours.
- **(b) Migration** — fathers working abroad for years; children raised by one parent.

## (4) Ideological

- **(a) Individualism** — marriage seen as a contract of convenience, not a covenant.
- **(b) Redefinition of family** in some societies and global media.
- **(c) Materialism** — success measured by money, not character.

## (5) Violence and injustice within families

Domestic violence, forced marriage, denial of inheritance, neglect of elderly parents, drug addiction among the young.

## 10.6 The Islamic solutions

- **(a) Return to taqwa** — the foundation (An-Nisa 1): fear Allah 'through whom you ask one another, and the wombs'.
- **(b) Easy, simple marriage** — 'the most blessed marriage is the one with the least burden' (Ahmad); end dowry culture.
- **(c) Rights and duties known and practised** — pre-marriage counselling; the nikah nama explained.
- **(d) Time for family** — the Prophet ﷺ was 'in the service of his family' (Al-Bukhari).
- **(e) Digital discipline** — screen rules for children; the parent as a model (At-Tahrim 6).
- **(f) Arbitration and reconciliation** before divorce (An-Nisa 35); strengthen the **Arbitration Councils** of the MFLO 1961.
- **(g) Care of the elderly at home** (Al-Isra 23).
- **(h) The state's duty** — Article 35 (protect marriage, family, mother and child); family-friendly work hours; housing; family courts that reconcile.

| The family — the names only      |                           |                         |                          |
|----------------------------------|---------------------------|-------------------------|--------------------------|
| Foundation                       | Functions                 | Challenges              | Solutions                |
| one soul (An-Nisa 1)             | moral school              | nuclear family          | taqwa                    |
| love and mercy (Ar-Rum 21)       | emotional security        | divorce                 | simple marriage          |
| nikah is Sunnah                  | lineage                   | dowry and late marriage | rights known             |
| Shah Waliullah: tadbir al-manzil | control of desire         | social media            | time                     |
|                                  | economic and elderly care | generation gap          | screen discipline        |
|                                  | cohesion                  | inflation               | arbitration (An-Nisa 35) |
|                                  |                           | migration               | elderly at home          |
|                                  |                           | individualism           | Article 35               |

**Figure 12** · At a glance — the family — the names only. The detail is in the sections above.

## Part Two — Contemporary Challenges, Narratives and Hot Debates

### 11.1 The UDHR and the Cairo Declaration — two languages of rights

The West says Muslim states use 'Shari'ah' to avoid rights; Muslims say the West uses 'rights' selectively. The balanced answer: both documents agree on most rights; the OIC must **implement** its own declaration (1990, revised 2020), and the West must apply the UDHR **without double standards** — Gaza, Kashmir and the treatment of refugees are the tests.

### 11.2 Women's-rights campaigns in Pakistan — the balanced answer

Support the just demands (safety, inheritance, education, consent, work) with the Quran and Sunnah; reject slogans that attack the family or modesty; and remember that the strongest weapon against custom is **Islamic knowledge** — most anti-women practices are condemned by the Shari'ah itself.

### 11.3 Cultural practices against Islam

| Practice                            | Why it is against Islam                       | Pakistani law                                                    |
|-------------------------------------|-----------------------------------------------|------------------------------------------------------------------|
| <b>Denial of inheritance</b>        | An-Nisa 7: an obligatory share                | PPC 498A (2011); 2020 Act                                        |
| <b>Forced marriage; vani, swara</b> | Consent required (Al-Bukhari)                 | PPC 310A, 498B (2011)                                            |
| <b>Honour killing</b>               | Murder (Al-Ma'idah 32); only a court punishes | 2016 Honour Act                                                  |
| <b>Dowry burden</b>                 | Not required; mahr is the husband's duty      | Dowry and Bridal Gifts (Restriction) Act 1976                    |
| <b>Marriage to the Quran</b>        | A mockery of the Book                         | PPC 498C (2011)                                                  |
| <b>Workplace harassment</b>         | An-Nur 30; honour protected                   | Protection against Harassment of Women at the Workplace Act 2010 |

### 11.4 Family breakdown

Divorce, social media, the generation gap, working parents and migration are straining the Pakistani family, which is still the country's main social safety net. The Islamic answer is **prevention** (taqwa, easy marriage, time, arbitration) more than cure.

### 11.5 The elderly, children and persons with disabilities

Old-age homes are growing in big cities; child labour and out-of-school children remain high; persons with disabilities face buildings, schools and jobs closed to them. The Quran's word for the young and old is **mercy and respect**; the state's duty is in Articles **11, 25-A, 35 and 38** and the **ICT Rights of Persons with Disability Act 2020**.

**DEBATE · 'HUMAN RIGHTS ARE A WESTERN IMPOSITION'**

**No:** the Farewell Sermon declared them in 632. **But** the modern system of monitoring and treaties is largely Western-built. The mature position: **accept the common ground, contribute the Islamic foundation, and reject only what clearly contradicts revelation.**

## Part Three — The Examiner's Record and Five Likely Questions

### 12.1 Every question on this topic, 2015–2026

| Year    | Question                                                                                                                                 | Ch.  |
|---------|------------------------------------------------------------------------------------------------------------------------------------------|------|
| 2015 Q8 | Stability of modern society depends upon a strong family system in the light of Islamic principles. Discuss.                             | 10   |
| 2017 Q3 | Write a comprehensive note on the right of inheritance granted to women by Islam.                                                        | 7    |
| 2019 Q4 | Describe the rights of women in Islam in the context of current wave of the feminist movement.                                           | 8    |
| 2020 Q4 | 'The last Sermon of the Holy Prophet (PBUH) is the basic document for awakening of conscience of mankind for human rights'. Discuss.     | 2    |
| 2020 Q7 | 'Islam teaches the lesson of human respect and dignity irrespective of colour, race and creed'. Discuss.                                 | 4    |
| 2021 Q3 | Islam provides better rights to men and women than all other religions. Explore with arguments.                                          | 5    |
| 2022 Q2 | Explain the concept of Human Rights in Islamic thought in specification of 'Status of Women in Islam'.                                   | 1, 5 |
| 2023 Q4 | Elaborate the rights of daughters granted by Islam and how these are denied by Muslims in the contemporary world?                        | 6    |
| 2023 Q8 | Notes: (i) Human rights in the light of the Sermon of the Farewell Pilgrimage; (ii) Social justice in an Islamic society.                | 2, 4 |
| 2024 Q5 | How does Islam highlight human dignity and greatness? Discuss.                                                                           | 4    |
| 2026 Q2 | Provide a comparative and critical analysis of the human rights granted by Islam with those enshrined in the UDHR.                       | 3    |
| 2026 Q8 | What are the challenges for the 'institution of family and its role' in the present era? Discuss them in the light of Islamic teachings. | 10   |

All twelve are answered in **T4QA**. The 2025 question on the **classist lifestyle** belongs to Topic 5 but draws on Chapter 4 (equality).

### 12.2 What the record teaches

- **Asked in nine of twelve years**; 2020, 2023 and 2026 had **two** questions each.
- **Women** is the favourite theme — never asked the same way twice.
- The latest papers move to **critical and contemporary** framing: the UDHR (2026), family challenges (2026), denial by Muslims (2023).
- **Never asked**: non-Muslims' rights; children; the elderly; workers; the economic rights of women as a whole.

### 12.3 Five likely questions

1. Discuss the rights of non-Muslims (minorities) in an Islamic state in the light of the Quran, Sunnah and the Charter of Madinah.
2. Islam guarantees the economic rights of women. Explain with reference to mahr, maintenance, inheritance and property.

3. What is the Islamic concept of human dignity? How does it differ from the Western concept?
4. Discuss the rights and duties of husband and wife, and the role of the family in the stability of society.
5. Islam protects the rights of children and the elderly. Discuss in the context of Pakistani society.

## Part Four — The One-Liner Bank

### One-liners · Human rights in Islam

1. Rights in Islam are of two kinds: **Huquq Allah** and **Huquq al-'Ibad**.
2. The rights of people are **not forgiven** by Allah until the wronged person forgives.
3. 'We have **honoured the children of Adam**' — **Al-Isra** 70.
4. Killing one soul is like killing **all mankind** — **Al-Ma'idah** 32.
5. The five Maqasid: **din, nafs, 'aql, nasl, mal**.
6. The Maqasid were set out by **Imam al-Ghazali** (*Al-Mustasfa*) and developed by **Imam al-Shatibi** (*Al-Muwafaqat*).
7. 'The best jihad is a word of justice before a **tyrant ruler**' — Abu Dawud and Al-Tirmidhi.
8. 'No bearer of burdens shall bear the burden of **another**' — **Al-An'am** 164.
9. Privacy of homes: **An-Nur** 27.
10. 'In their wealth is a right for the one who asks and the **deprived**' — **Adh-Dhariyat** 19.
11. 'If Fatimah daughter of Muhammad stole, I would cut her hand' — the case of the **Makhzumi** woman.
12. The intercessor in the Makhzumi case: **Usamah ibn Zayd (RA)**.

### One-liners · The Farewell Sermon

13. Delivered on **9 Dhul Hijjah 10 AH** (March 632) at **Arafat**.
14. Audience: more than **a hundred thousand** Companions.
15. 'This day I have **perfected your religion**' — **Al-Ma'idah** 3, revealed at Arafat.
16. 'Your lives, property and **honour** are sacred' — Al-Bukhari.
17. 'No Arab over a non-Arab ... except by **taqwa**' — Musnad Ahmad.
18. 'Fear Allah concerning women; you took them as **a trust from Allah**' — Muslim.
19. First riba abolished: that of **Abbas ibn Abd al-Muttalib**.
20. First blood-claim abolished: that of **Ibn Rabi'ah ibn al-Harith**.
21. 'No offender is responsible except for **his own** offence' — Al-Tirmidhi.
22. 'There is **no bequest for an heir**' — Abu Dawud and Al-Tirmidhi.
23. 'Let the present **convey to the absent**' — Al-Bukhari.
24. The Sermon came about **580 years** before Magna Carta (1215).

### One-liners · Islam and the UDHR

25. UDHR adopted on **10 December 1948** — Human Rights Day.
26. The UDHR has **30 articles**.
27. The UDHR vote: **48-0-8**; Pakistan voted **in favour**.
28. UN members in 1948: **58**.
29. The two Covenants of **1966**: ICCPR and ICESCR.
30. The **Cairo Declaration** on Human Rights in Islam: OIC, **1990**, 25 articles.
31. Revised OIC Declaration on Human Rights: **2020**.
32. Universal Islamic Declaration of Human Rights: **1981**.
33. Fundamental Rights in Pakistan's Constitution: **Articles 8-28**.
34. Muslim states' main reservations to the UDHR: **Articles 16 and 18**.

35. Duties in the UDHR appear in **Article 29**.
36. 'Breaking a dead man's bone is like breaking it **alive**' — Abu Dawud.

## One-liners · Dignity and equality

37. 'We created man in the **best of stature**' — **At-Tin** 4.
38. 'I will make upon the earth a **khalifah**' — **Al-Baqarah** 30.
39. The angels prostrated to **Adam** — **Al-Baqarah** 34.
40. Man accepted the **trust (amanah)** — **Al-Ahzab** 72.
41. The diversity of **languages and colours** is a sign of Allah — **Ar-Rum** 22.
42. 'People are the children of Adam, and Adam was from **dust**' — Abu Dawud and Al-Tirmidhi.
43. 'Allah does not look at your faces and wealth but at your **hearts and deeds**' — Muslim.
44. 'You are a man in whom there is **Jahiliyyah**' — to **Abu Dharr (RA)**.
45. The black Companion who gave the adhan on the Ka'bah: **Bilal (RA)**.
46. 'Salman is **one of us**, the people of the house' — Al-Hakim.
47. 'Since when have you enslaved people whose mothers bore them **free**?' — **Hazrat Umar (RA)**.
48. Iqbal's philosophy of the self: **khudi**.
49. 'Women are the **twin halves** of men' — Abu Dawud and Al-Tirmidhi.
50. Messengers were sent so that people may uphold **justice** — **Al-Hadid** 25.
51. Social justice in Pakistan's Constitution: **Article 37**.

## One-liners · Status of women

52. The girl buried alive will be asked **for what sin she was killed** — **At-Takwir** 8–9.
53. Grief at the birth of a daughter is condemned in **An-Nahl** 58–59.
54. In the Quran, **both** Adam and Hawwa repented — **Al-A'raf** 23.
55. Equal reward for men and women: **Al-Ahzab** 35; **Aal-e-Imran** 195; **An-Nahl** 97.
56. Sati was abolished in India in **1829**.
57. English married women gained property rights through the Acts of **1870 and 1882**.
58. Women's vote: UK **1918/1928**, USA **1920**, Switzerland **1971**.
59. *The Second Sex* (1949): **Simone de Beauvoir**; *The Feminine Mystique* (1963): **Betty Friedan**.
60. First women's rights convention: **Seneca Falls, 1848**.
61. #MeToo — the **fourth wave**, 2017.
62. APWA was founded in **1949** by **Begum Ra'ana Liaquat Ali Khan**.

## One-liners · Daughter, wife, mother, citizen

63. Whoever raises two daughters will be with the Prophet ﷺ **like two joined fingers** — Muslim.
64. Daughters well treated are a **shield from the Fire** — Al-Bukhari and Muslim.
65. 'Fear Allah and be **just between your children**' — Al-Bukhari and Muslim.
66. The woman whose forced marriage was annulled: **Khansa bint Khidam (RA)**.
67. 'Fatimah is a **part of me**' — Al-Bukhari.
68. Daughters are mentioned **first** among Allah's gifts — **Ash-Shura** 49.
69. 'Live with them in **kindness**' — **An-Nisa** 19.
70. 'They are **clothing** for you and you are clothing for them' — **Al-Baqarah** 187.
71. Women have rights **like their obligations** — **Al-Baqarah** 228.

72. **Qawwamun** (An-Nisa 34) = protectors and maintainers — a duty of care.
73. 'The best of you are the best to their **wives**' — Al-Tirmidhi.
74. Khula' of the wife of **Thabit ibn Qays** — Al-Bukhari.
75. 'Your mother' — said **three times**, then 'your father' — Al-Bukhari and Muslim.
76. 'Paradise is beneath her **feet**' — Al-Nasa'i and Ibn Majah.
77. 'Weakness upon weakness' — the mother's burden, **Luqman** 14.
78. Market supervisor appointed by Umar (RA): **Al-Shifa bint Abdullah**.
79. Nurse of the Prophet's ﷺ battles: **Rufaydah al-Aslamiyyah**.
80. Hazrat Aishah (RA) narrated about **2,210** hadith.
81. Believing men and women are **allies of one another** — **At-Tawbah** 71.
82. Anti-Women Practices Act: **2011** (PPC 310A, 498A, 498B, 498C).
83. Honour-killing law: **2016**.
84. Constitution: **Article 25** (equality), **34** (women), **35** (family).

## One-liners · Economic rights and inheritance

85. For women is a share — **little or much, an obligatory share** — **An-Nisa** 7.
86. 'For the male, the like of the share of **two females**' — **An-Nisa** 11.
87. One daughter alone: **1/2**; two or more: **2/3**.
88. Wife: **1/4** without children; **1/8** with children.
89. Mother: **1/6** with children; **1/3** without.
90. Uterine brothers and sisters share **equally**.
91. Two daughters with both parents: each daughter **1/3**, father **1/6**.
92. Bequest limit: **one-third**, not for an heir.
93. Order: funeral → **debts** → bequest → heirs.
94. Mahr is a **free gift** — **An-Nisa** 4.
95. Mahr cannot be taken back, 'even a **heap of gold**' — **An-Nisa** 20.
96. Mahr and nikah registration: **Muslim Family Laws Ordinance, 1961**.
97. Depriving women of inheritance: **PPC 498A**.
98. **Enforcement of Women's Property Rights Act: 2020**.

## One-liners · Other rights and the family

99. 'Whoever wrongs a mu'ahad ... **I will argue against him**' — Abu Dawud.
100. The Caliph who gave a stipend to an old Jew: **Umar (RA)** (*Kitab al-Kharaj*, Abu Yusuf).
101. The judge in the case of Ali's shield: **Qadi Shurayh**.
102. Minorities in Pakistan's Constitution: **Article 36**.
103. 'Give the worker his wage before his **sweat dries**' — Ibn Majah.
104. The blind Companion of Surah Abasa: **Abdullah ibn Umm Maktum (RA)**.
105. No child under **14** in hazardous work — **Article 11(3)**.
106. 'Each of you is a **shepherd**' — Al-Bukhari and Muslim.
107. Love and mercy between spouses — **Ar-Rum** 21.
108. Marriage is a **firm covenant** — **An-Nisa** 21.
109. Arbiters from both families — **An-Nisa** 35.
110. 'Protect yourselves and your families from a **Fire**' — **At-Tahrim** 6.
111. 'Marriage is my **Sunnah**' — Ibn Majah.

**112.** The household as a stage of civilisation (**tadbir al-manzil**) — **Shah Waliullah**.

**113.** Family Courts Act (Pakistan): **1964**.

#### ONE-LINER COUNT

This topic carries **113 one-liners**, numbered 1–113. Revise them in blocks of twenty; tick the ones you can answer without looking.

## Part Five — Revision Notes · Topic 4

Read these on the night before the paper. Each chapter is compressed into chains (→) and short lists.

### R4.0 The topic in ten lines

1. Rights → from Allah → cannot be withdrawn → joined with duties → accountable in the Hereafter.
2. Maqasid → din · nafs · 'aql · nasl · mal → the map of all rights.
3. Farewell Sermon → life · property · honour · equality · women · riba · feuds · personal guilt · inheritance · convey.
4. UDHR → 1948, 30 articles, 48–0–8 → agree on most → differ on source, duties, scope, enforcement → critique both.
5. Dignity → honoured, best stature, spirit, khalifah, knowledge, angels, universe, trust.
6. Equality → one soul → Adam from dust → hearts not faces → Bilal, Abu Dharr, Salman, Usamah → Umar: 'born free'.
7. Women → before Islam (burial, no inheritance, coverture, sati) → Islam: one soul, equal reward, no blame for the Fall.
8. Life-cycle → daughter (life, love, education, consent, inheritance) → wife (mahr, nafaqah, kindness) → mother (three times) → citizen.
9. Inheritance → An-Nisa 7, 11, 12 → 2:1 balanced by duties → equal or more in many cases → 498A.
10. Family → Ar-Rum 21 → functions → challenges → taqwa, easy marriage, arbitration, Article 35.

### R4.1 Chapter 1 · Human rights in Islam

- **(i) Concept:** rights of a human being → Islam: given by Allah → permanent → joined with duties → worship (Al-Isra 70).
- **(ii) Two kinds:** Huquq Allah → Huquq al-'Ibad → 'the bankrupt' (Muslim).
- **(iii) Sources:** Quran → Sunnah (Charter, Sermon) → Caliphs → ijma', ijtihad.
- **(iv) Maqasid:** Ghazali (*Mustasfa*) → Shatibi (*Muwafaqat*) → faith, life, intellect, lineage, property.
- **(v) Rights:** life (Al-Ma'idah 32) → dignity, honour → equality (Al-Hujurat 13) → justice (An-Nisa 58) → religion (Al-Baqarah 256) → property (An-Nisa 29) → privacy (An-Nur 27; Al-Hujurat 12) → opinion ('word of justice before a tyrant') → basic needs (Adh-Dhariyat 19) → personal responsibility (Al-An'am 164) → fair trial ('if Fatimah stole').
- **(vi) Features:** divine · universal · permanent · balanced · faith + law · comprehensive · moral.

### R4.2 Chapter 2 · The Farewell Sermon

- **(i) Occasion:** 9 Dhul Hijjah 10 AH → Arafat → 100,000+ → Al-Ma'idah 3 revealed.
- **(ii) Declarations:** lives, property, honour sacred (Al-Bukhari) → no Arab over non-Arab (Ahmad) → women a trust (Muslim) → riba of Abbas abolished → blood of Ibn Rabi'ah abolished → no one pays for another → no bequest for an heir → servants fed as you eat → hold to the Book → convey to the absent.
- **(iii) Why 'basic document':** universal 'O people' → 580 years before Magna Carta → enforced first on his own family → conscience ('fear Allah') → complete.
- **(iv) Table:** Sermon ↔ UDHR Articles 1, 2, 3, 11, 12, 16, 17, 22–25.
- **(v) Iqbal:** spiritual democracy.

### R4.3 Chapter 3 · Islam and the UDHR

- **(i) Facts:** 10 Dec 1948 → 30 articles → 48–0–8 → Pakistan yes → non-binding → Covenants 1966.
- **(ii) Muslim documents:** Sermon 632 → UIDHR 1981 → Cairo 1990 → OIC 2020 → Pakistan Arts 8–28.
- **(iii) Agree:** dignity, equality, life, no torture, fair trial, privacy, asylum, property, work, education.
- **(iv) Differ:** source (Allah vs human) → duties (Art. 29 only) → enforcement (veto vs taqwa + state + Hereafter) → scope (unborn, dead, animals, environment) → family vs individual → limits → Arts 16, 18 reservations.
- **(v) Critique of UDHR:** 58 states, colonies silent → double standards (Gaza, Kashmir) → veto → individualism → rights without duties.
- **(vi) Self-critique:** gap in practice → authoritarianism → weak OIC implementation.
- **(vii) Verdict:** great achievement; Islam firmer, fuller, balanced — proved only by practice.

### R4.4 Chapter 4 · Dignity, equality, social justice

- **(i) Dignity:** Al-Isra 70 → At-Tin 4 → Al-Hijr 29 (spirit) → Al-Baqarah 30 (khalifah), 31 (names), 34 (angels) → Al-Jathiyah 13 (universe) → Al-Ahzab 72 (trust) → Iqbal's khudi.
- **(ii) Colour and race:** one soul (An-Nisa 1) → Adam from dust → Al-Hujurat 13 → colours a sign (Ar-Rum 22) → hearts not faces (Muslim).
- **(iii) Practice:** Bilal on the Ka'bah → Abu Dharr: 'Jahiliyyah in you' → Salman 'of us' → Usamah commands → Zayd marries Zaynab.
- **(iv) Creed:** no compulsion → Al-Mumtahanah 8 → 'is it not a soul?'.
- **(v) Law:** Umar and the Egyptian: 'born free' → Makhzumi woman.
- **(vi) Men and women:** Aal-e-Imran 195 → Al-Ahzab 35 → 'twin halves'.
- **(vii) Every condition:** poor, criminal, enemy, dead, servant.
- **(viii) Social justice:** Al-Hadid 25 → An-Nahl 90 → equality before law → circulation of wealth (Al-Hashr 7) → right of the needy → wages → accountable rulers → welfare (Umar, Umar ibn Abd al-Aziz) → Arts 3, 37, 38.

### R4.5 Chapter 5 · Status of women: before and in Islam

- **(i) Before:** Arabia (burial, no inheritance, widows inherited) → Greece (Aristotle) → Rome (patria potestas) → India (sati till 1829) → England (coverture till 1870/1882).
- **(ii) Islam:** one soul → both repented (Al-A'raf 23) → equal reward (An-Nahl 97; Al-Ahzab 35).
- **(iii) Comparison table:** life, consent, property, inheritance, name, divorce, remarriage, education, vote (UK 1918/28, US 1920, Swiss 1971) → Annie Besant.
- **(iv) Trap:** compare practices, respect religions (Al-An'am 108).
- **(v) 2021:** add men's rights too.

### R4.6 Chapter 6 · Daughter, wife, mother, citizen

- **(i) Daughter:** life (Al-An'am 151) → gift, named first (Ash-Shura 49) → two daughters = joined fingers (Muslim) → shield from Fire → be just between children → education → consent (Khansa) → inheritance (An-Nisa 7) → Fatimah 'part of me'.
- **(ii) Denied today:** neglect → education gap → forced marriage, vani, swara → inheritance 'gifted' away → dowry → honour killing → marriage to the Quran → laws 2011, 2016, 2020; Arts 25, 34, 35.
- **(iii) Wife:** mahr (An-Nisa 4) → maintenance (At-Talaq 6; Al-Baqarah 233) → kindness (An-Nisa 19) → 'best to their wives' → mutual rights (Al-Baqarah 228), clothing (187) → qawwamun = duty → khula' (Thabit's wife) → own name and property.
- **(iv) Mother:** Al-Isra 23 → Luqman 14 → 'your mother' ×3 → Paradise under her feet.

- **(v) Citizen:** Aishah's hadith → Khadijah's trade → Al-Shifa in the market → bay'ah → Umm Salamah → Rufaydah, Nusaybah → At-Tawbah 71 → Quaid 1944 → Iqbal.

## R4.7 Chapter 7 · Economic rights

- **(i) Principle:** her earning is hers (An-Nisa 32).
- **(ii) Mahr:** free gift → hers → not taken back (An-Nisa 20) → prompt/deferred → nikah nama (MFLO 1961).
- **(iii) Nafaqah:** food, clothing, shelter → even if rich → iddah, pregnancy → paid nursing.
- **(iv) Inheritance:** An-Nisa 7 → widows not inherited (An-Nisa 19) → shares: daughter 1/2, 2/3 → wife 1/4, 1/8 → mother 1/6, 1/3 → sister → uterine equal → grandmother 1/6.
- **(v) Why 2:1:** his duties (mahr, maintenance) → her share untouched → several sources → only one case.
- **(vi) Equal or more:** parents 1/6 each → uterine siblings → daughter and brother 1/2 each → two daughters 1/3 each vs father 1/6.
- **(vii) Fixed:** no bequest for an heir → limits of Allah (An-Nisa 13-14) → order: funeral → debts → one-third bequest → heirs.
- **(viii) Pakistan:** 'haq bakhshwana' → PPC 498A → 2020 Act.

## R4.8 Chapter 8 · Feminism

- **(i) Waves:** 1848–1920 vote → 1960s–80s equality (Beauvoir, Friedan) → 1990s identity → 2010s online, #MeToo.
- **(ii) Pakistan:** Fatima Jinnah → Ra'ana Liaquat, APWA 1949 → laws 2010–2020.
- **(iii) Agree:** dignity, education, property, consent, divorce, safety, harassment, participation.
- **(iv) Differ:** equality ≠ identity (An-Nisa 32) → freedom within morals (An-Nur 30) → family as unit → revelation as standard.
- **(v) Answer:** support just demands → separate Islam from culture → reject anti-family slogans → Prophetic women models → implement.

## R4.9 Chapter 9 · Others' rights

- **(i) Non-Muslims:** no compulsion → Al-Mumtahanah 8 → places of worship (Al-Hajj 40) → 'I will argue against him' → Umar's stipend → Ali's shield → Umar at the Holy Sepulchre → Arts 20, 22, 36; 11 August 1947.
- **(ii) Children:** life → nursing → upbringing (At-Tahrim 6) → 'each a shepherd' → mercy (kissing Hasan) → Arts 11(3), 25-A.
- **(iii) Elderly:** not 'uff' → respect elders → 'let him be humbled'.
- **(iv) Workers:** wage before sweat dries → brothers, same food, no overburden.
- **(v) Disabled:** Abasa → Ibn Umm Maktum deputy of Madinah → exemptions.

## R4.10 Chapter 10 · The family

- **(i) Foundation:** one soul (An-Nisa 1) → love and mercy (Ar-Rum 21) → comfort of eyes (Al-Furqan 74) → 'marriage is my Sunnah' → Shah Waliullah: tadbir al-manzil.
- **(ii) Structure:** nikah covenant (An-Nisa 21) → love → rights both sides → upbringing → kinship ('whoever wants provision increased...').
- **(iii) Functions (2015):** moral school → emotional security → lineage → control of desire → economics → care of weak → cohesion → culture.
- **(iv) Safeguards:** chastity → arbitration (An-Nisa 35) → divorce last resort → privacy.

- **(v) Challenges (2026):** nuclear family → divorce → dowry/late marriage → social media → generation gap → inflation → migration → individualism → violence.
- **(vi) Solutions:** taqwa → simple marriage ('least burden') → rights known → time → screen discipline → arbitration councils → elderly at home → Article 35.

### R4.11 Part Two · Today

UDHR vs Cairo → implement both, no double standards · women's campaigns → support the just, reject the anti-family · cultural practices table (498A, 498B, 498C, 310A, 2016, 1976, 2010) · family breakdown → prevention · elderly, children, disabled → Articles 11, 25-A, 35, 38 · 'rights are Western' → no: 632.

### R4.12 The figures to draw

The **rights timeline** (632 → 1215 → 1689 → 1776 → 1789 → 1948 → 1990 → 2020); the **Sermon wheel**; the **woman's life-cycle** (daughter → wife → mother → citizen); the **inheritance bars** (2:1, equal, double); the **family house** (taqwa foundation, five pillars).